SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/16/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued**.** Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule* 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 8:31 AM CASE NUMBER: C25-01307
CASE NAME: MARKEE WEBB VS. SAN PABLO MEDICAL CENTER
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

If the tentative ruling at Line 10 is uncontested, further Case Management Conference is set for December 11, 2026. If either Party challenges the tentative ruling on Line 10, a Case Management Conference will be held.

2. 9:00 AM CASE NUMBER: C25-02594
CASE NAME: JANE DOE VS. CHARTHOUSE PUBLIC SCHOOLS
HEARING ON ORDER TO SHOW CAUSE IN RE: TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION
FILED BY: DOE, JANE
TENTATIVE RULING:

Plaintiff's request for a preliminary injunction is **denied.**

Background and Procedural History

Plaintiff Jane Doe, who was a minor at the time of the events described below and appeared through her Guardian ad Litem Janice Doe, was a senior at the Contra Costa School of Performing Arts ("COCOSPA"), a charter school operated by Defendant Charthouse Public Schools, during the 2024-2025 school year. Defendant Gerard Flaherty was employed by Charthouse as COCOSPA's Climate and Culture Supervisor. Plaintiff alleges that beginning in 2024, Flaherty used his position to groom her, and that on February 19, 2025, when she was seventeen years old, he sexually assaulted her after supplying her with alcohol.

Flaherty was arrested in May 2025. The Contra Costa County District Attorney's Office charged him by felony complaint with Forcible Rape of a Child Over 14, Assault with Intent to Commit a Felony on a Victim Under 18, and Unlawful Sexual Intercourse, with enhancements for great bodily injury. On October 9, 2025, Flaherty entered a guilty plea to Count 3 (Pen. Code § 261.5(c)) under a negotiated agreement and the remaining counts/enhancements were dismissed. As part of the plea, Flaherty admitted the aggravating factor that he violated a position of trust as Plaintiff's teacher and school administrator. The court (Hon. John W. Kennedy) accepted the plea over the objection of Plaintiff and her family, who asked that the matter proceed to trial. Flaherty was sentenced to the aggravated term of three years, later reflected on the abstract of judgment form as 36 months with applicable credits, and was ordered to surrender to the Martinez Detention Facility by January 5, 2026.

Plaintiff filed this civil action on September 10, 2025, asserting three causes of action: (1) sexual assault of a minor (Flaherty); (2) negligent hiring, supervision, and/or retention (Charthouse); and (3) negligent supervision of Plaintiff (Charthouse).

On June 18, 2026, Plaintiff filed an ex parte application for a temporary restraining order (TRO) and order to show cause (OSC) re: preliminary injunction, seeking to restrain Flaherty, his agents, attorneys, spouse, and others acting on his behalf from transferring, concealing, encumbering, or disposing of assets, with particular focus on a residence at 420 Kahrs Avenue in Pleasant Hill, pending resolution of this case.

On June 23, 2026, non-party Elaine Lenore, identified as Flaherty's spouse in a pending marital dissolution, Contra Costa Sup. Ct. Case No. D25-04108, filed an opposition, objecting that the Kahrs Avenue property is community property in which she holds an ownership interest under Family Code section 751, and that she was never served with or joined in Plaintiff's ex parte application despite the request for TRO purporting to bind her. She requested that the application be denied in its entirety or, at minimum, that any relief affecting the Kahrs Avenue property or her property interests be denied.

On June 23, 2026, the court (Hon. Charles S. Treat) issued a TRO ordering, among other things, that any proceeds from the sale of Flaherty's interest in the Kahrs Avenue property be held in his counsel's IOLTA trust account, and broadly restraining Flaherty and those acting on his behalf from transferring or encumbering the property, his other real property, and effectively all other categories of assets (bank accounts, securities, vehicles, jewelry, investments, business assets, etc.) pending further order. The order set a hearing on the OSC as to why a preliminary injunction should not issue on the same terms, with the TRO to remain in effect until the hearing.

On July 9, 2026, Flaherty, through counsel, filed an opposition to Plaintiff's request for a preliminary injunction. Flaherty argues that (1) Plaintiff has not demonstrated the requisite irreparable harm or likelihood of success, since no sale or transfer of the Kahrs Avenue property is pending; (2) the requested relief is overbroad and constitutes a de facto prejudgment attachment, reaching essentially all of his assets; and (3) the balance of hardships favors denial or narrow tailoring, given the pending marital dissolution proceeding and restrictions on his legitimate financial needs (though the Court notes that Plaintiff's own ex parte notice had proposed excluding transfers "in the usual course of business or for the necessities of life" from any general asset restraint, a limitation not carried into the TRO as signed.)

Analysis

Plaintiff Fails to Show Grounds for a Preliminary Injunction

A preliminary injunction is a provisional remedy governed by Code of Civil Procedure sections 525-534. (Code Civ. Proc., §§ 525-534.) The court evaluates two interrelated factors, the likelihood the moving party will prevail on the merits and the relative interim harms. (*White v. Davis* (2003) 30 Cal.4th 528, 554, 560.) A preliminary injunction operates prospectively and is aimed at preventing future conduct. (*People ex rel. Green v. Grewal* (2015) 61 Cal.4th 544, 566; *Cal-Dak Co. v. Sav-On Drugs, Inc.* (1953) 40 Cal.2d 492, 496.) It is proper only if there is a substantial basis to suppose the defendant, if not restrained, will actually engage in the conduct sought to be enjoined. (*Epstein v. Superior Court* (2011) 193 Cal.App.4th 1405, 1410 (Epstein); *Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.)

Here, even assuming Plaintiff can show a strong likelihood of prevailing on the merits, the requested relief is aimed at preserving the collectability of a future money judgment in this tort action by restraining Defendant's disposition of the Kahrs Avenue property, and, more broadly, all of Defendant's real property, tangible assets, business assets, bank accounts, securities, vehicles, and other items of value. (Cerri Decl. ¶¶ 2-6.) Plaintiff's interim harm showing rests primarily on counsel's statement that, should Defendant sell the Kahrs Avenue home without an order addressing the proceeds, he "will at some point be able to move the proceeds out of state, hide the money, gift it or otherwise ensure that the Plaintiff is unable to collect on the inevitable judgment." (Cerri Decl. ¶ 5.) This is not actual evidence of a realistic prospect that Defendant will conceal, transfer, encumber, or dispose of the property or its proceeds before judgment. (*Epstein*, *supra*, 193 Cal.App.4th at p. 1410.) Plaintiff identifies no pending sale, listing, offer, or other transaction involving the property, and no attempted transfer of any other asset.

Injunctions will rarely be granted where a suit for damages provides a clear remedy. (*Thayer Plymouth*

Center, Inc. v. Chrysler Motors (1967) 255 Cal.App.2d 300, 307; *Pacific Decision Sciences Corp v. Superior Court* (2004) 121 Cal.App.4th 1100, 1110.) "An injunction will not issue where 'only money is involved'" because "there is no threat of irreparable harm, because monetary losses are compensable in damages." (Rutter Group, Civil Procedure Before Trial, 9:524.) To obtain a preliminary injunction, the plaintiff must demonstrate that monetary damages would not be an adequate remedy for the alleged wrongdoing. (Code Civ. Proc. § 526(a)(4) [injunction may be granted (4) When pecuniary compensation would not afford adequate relief.]; *Estes v. Rowland* (1993) 14 Cal.App.4th 508, 535 ["There is no right to equitable relief or an equitable remedy when there is an adequate remedy at law." (11 Witkin, Summary of Cal. Law (9th ed. 1990) Equity, § 3, p. 681); *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 [there must be an injury that "cannot be compensated by an ordinary damage award"].)

Plaintiff offers no actual evidence of Defendant's insolvency or inability to satisfy a judgment; to the contrary, Plaintiff's own showing is that the Kahrs Avenue property, which Defendant states is community property currently the subject of a pending marital dissolution proceeding, represents substantial, identifiable equity potentially available to satisfy a judgment. (Cerri Decl. ¶ 5; Lenore Decl. ¶ 3.) The requested restraint would function primarily as a mechanism to secure a prospective money judgment.

The Court may deny a preliminary injunction either (1) on its finding irreparable injury will not result to the party seeking the injunction, or (2) that the party has failed to demonstrate a reasonable probability of success on the merits. (*People v. Pacific Land Research Co.* (1977) 20 Cal.3d 10, 21.) Based on the foregoing, the Court finds Plaintiff has failed to meet her burden to show imminent, irreparable harm.

Plaintiff's motion relies primarily on *Oiye v. Fox* (2012) 211 Cal.App.4th 1036 (Oiye), for the proposition that a tort claimant is a "creditor" entitled to injunctive relief against a defendant's disposition of assets even before judgment. *Oiye*, though it also involved a defendant convicted of sexually assaulting a minor victim and sentenced to state prison, is distinguishable. There, the plaintiff pled a fraudulent transfer cause of action under the then-Uniform Fraudulent Transfer Act ("UFTA"), since renamed the Uniform Voidable Transactions Act ("UVTA"), and alleged that, shortly after defendant's arrest, he transferred his residence to a trust to hinder, delay, or defraud a creditor. (*Oiye*, *supra*, 211 Cal.App.4th at pp. 1045 to 1046.) The Court of Appeal affirmed a preliminary injunction as a UFTA remedy authorized by Civil Code section 3439.07, subdivision (a)(3)(A), and held the timing and nature of the documented conveyance to a trust supported an inference of asset shielding and potential injury sufficient to restrain further disposition. (*Id*. at pp. 1057 to 1060.)

Here, by contrast, Plaintiff's complaint pleads tort causes of action only and does not plead a fraudulent transfer claim or present evidence of a documented transfer comparable to the conveyance to a trust in *Oiye*. Counsel's declaration states that "Flaherty has not yet transferred assets to Plaintiff's knowledge." (Cerri Decl. ¶ 5.) On this record, *Oiye* does not support the requested injunction.

Plaintiff Fails to Establish that Attachment Requirements Have Been Satisfied

"The remedies provided by the Attachment Law are not exclusive; in some situations, an injunction may be a more satisfactory remedy. Accordingly, [Code of Civil Procedure section] 482.020 states that nothing in the Attachment Law precludes the granting of injunctive relief; i.e., the court should not refuse the equitable remedy of injunction on the ground that the attachment statute provides an adequate remedy at law. However, an injunction may not be used to obtain what is actually an attachment without meeting the requirements for an attachment." (6 Witkin, Cal. Proc. (5th ed. 2008), § 49, citing *Doyka v. Superior Court* (1991) 233 Cal.App.3d 1134, 1136 (Doyka).)

In *Doyka*, the trial court enjoined the defendant from "'secreting, using, distributing, transferring, or otherwise disposing of all or any portion of funds in the sum of One Hundred Twenty-five Thousand and no/100 ($125,000.00), whether on deposit in The Pacific Bank, or in any other lending or financial institution ... for any purpose relating to the construction, renovation, and/or sale or other disposition of all or any portion of the real property and improvements located at 2572-2588 Pine Street, San Francisco, California, or for any other use or purpose whatsoever.'" (*Doyka*, *supra*, 233 Cal.App.3d at p. 1136.) The Court of Appeal reversed the order, which "effectively impose[d] a prejudgment attachment upon all of Doyka's liquid assets without satisfying the statutory requirements for an attachment." (*Ibid*.)

Plaintiff could only obtain what amounted to an attachment through a preliminary injunction if all the statutory requirements of attachment were satisfied. Plaintiff does not claim to have satisfied the requirements of the statute.

Disposition

Plaintiff's request for preliminary injunction is **denied**. The June 23, 2026 TRO is **dissolved**. Nothing in this order precludes the parties from stipulating to a narrower or alternative arrangement, including with respect to the disposition or preservation of proceeds from any sale of the Kahrs Avenue property. Because the Court denies the request for injunction on the merits, it does not reach Elaine Lenore's opposition regarding her community property interest in the Kahrs Avenue property or the adequacy of notice to her.

3. 12:00 PM CASE NUMBER: MSC21-00653
CASE NAME: WANG BROTHERS VS EAST BAY MUD
COURT TRIAL HEARING
FILED BY:
TENTATIVE RULING:*

This is set for ongoing court trial at 1:30.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-00895
CASE NAME: I.B. VS. COUNTY OF CONTRA COSTA
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: COUNTY OF CONTRA COSTA
****TENTATIVE RULING:****

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the sole cause of action, negligence, alleged against Defendant by plaintiff I.B. ("Plaintiff") fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court's ruling is to **DENY** Defendant's Motion, without prejudice.

Meet and Confer

The meet and confer requirement has been satisfied. (Morgan W. Hansen Decl., ¶¶ 2-4; Code of Civ. Proc., § 439, subd. (a)(3)(A).)

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

Further, “If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment.” (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

<u>Background: Facts Alleged in Complaint</u>

In approximately the year 2000, Plaintiff was in foster care under the supervision of Defendant. (Complaint, ¶ 23.) Around that same time, Defendant placed Plaintiff in the foster home of her great Aunt ("Foster Mother"), located in Richmond, California. (*Id*. at ¶ 24.) From approximately 2000 to 2003, when Plaintiff was approximately 11 to 13 years old, Plaintiff was sexually abused and assaulted by the adult son and teenaged grandson of her Foster Mother. (*Id*. at ¶ 25.) Plaintiff reported the sexual abuse to a counselor appointed to Plaintiff by Defendant, but no investigation was completed, no action was taken, and the perpetrators continued to sexually abuse and assault Plaintiff even after the express reports of sexual abuse. (*Id*. at ¶ 29.)

Plaintiff became pregnant at 13, and when she was 9 months pregnant, she was removed from the home of the Foster Mother because the Foster Mother did not want a baby in her home. (Complaint, ¶ 30.) Defendant learned of Plaintiff’s pregnancy but never questioned her about it or asked who the father was. (*Id*. at ¶ 31.) Defendant failed to impose appropriate standards for the safety and welfare of children in their care. (*Id*. at ¶ 44.) Defendant failed to conduct visits to Plaintiff’s foster care placement that were of sufficient frequency and/or reasonably calculated to determine whether Plaintiff was safe and not being subjected to maltreatment. (*Id*. at ¶ 48.) Plaintiff alleges that she suffered physical, psychological, and emotional injuries as a result of the childhood sexual assault she experienced. (*Id*. at ¶ 55.) Plaintiff also alleges that no employee consciously balanced the risks and advantages related to her report of sexual abuse. (*Id*. at ¶ 60.)

Plaintiff filed the Complaint on May 2, 2022, which alleges a single claim of negligence against Defendant and a single claim of negligence against the Doe defendants. (Complaint, p. 1.) She seeks general damages, special damages, treble damages, punitive damages, and costs of suit. (Complaint, p. 15.)

<u>Discussion</u>

<u>Summary of Arguments</u>

Defendant’s Motion argues that discretionary immunity bars Plaintiff’s claims. (Motion, p. 3.) Defendant asserts that Government Code section 820.2 applies here, which makes a public employee immune for their discretionary acts. (Motion, pp. 4, 6-7.) Further, where a public employee is immune to liability for a claim, such as under section 820.2, the public entity employer is also immune. (Gov. Code, § 815.2, subd. (b).) Defendant cites to *K.C. v. Cty. of Merced* (2025) 109 Cal.App.5th 606, 606, review granted June 5, 2025, S290435, as authority for the proposition that in cases where a foster child is sexually assaulted, notifies a county representative that they were or are being sexually assaulted, and the county takes no action, that the worker and county are immune under the doctrine of discretionary authority. (Motion, p. 7.) Defendant argues that this case is similar enough to *K.C. v. Cty. of Merced* that a similar result, dismissal, should occur here, "Just like the *K.C*. plaintiff, I.B. alleges that a social worker made a decision regarding an investigation of child abuse and a subsequent decision regarding the child's foster home placement. This Court may consequently apply discretionary immunity and dismiss the negligence claim against the County, as the alleged wrongdoing necessarily involved the exercise of analysis and judgment as to what was proper." (Motion, p. 8.)

Plaintiff argues that this case is guided by *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, which "binds this Court [and] is well-settled and clear: discretionary immunity applies 'only to deliberate and considered policy decisions, in which a [conscious] balancing [of] risks and advantages ... took place.' " (Opposition, p. 1.) Plaintiff contends that discretionary act immunity is a limited exception and cannot be applied as a matter of law in this case. (Opposition, pp. 4-13.) This is because under California Supreme Court precedent, only conscious and considered decision making is entitled to discretionary immunity and decisions made in the course of foster care are operational or ministerial decisions. (*Id*. at pp. 5-13.) Plaintiff also argues that the county is directly liable for breaching mandatory duties under statutes such as Welfare & Institutions Code section 328, Health & Safety Code § 1522, and Penal Code sections 11165.9 and 11166. (Opposition, pp. 13-16.) Finally, Plaintiff asks that the Court stay this matter pending resolution of the California Supreme Court's decision in its review of the *K.C. v. Cty. of Merced* matter, if the Court is inclined to grant the Motion and dismiss this matter. (Opposition, pp. 16-17.)

Defendant argues on reply that *K.C. v. Cty. of Merced* remains persuasive law and the cases it relied on are still good law, so this Court should grant its Motion. (Reply, pp. 4-6.) Defendant argues that *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, is "inapposite" because it involved a ruling on summary judgment whereas the instant case involves a ruling on a motion for judgment on the pleadings, which is more similar to the demurrer considered in *K.C. v. Cty. of Merced*. (Reply, p. 4.) Defendant also argues that the Complaint presents conflating liability theories and does not contain a cause of action based on failure to discharge mandatory duties. (*Id*. at p. 3-4.) Defendant argues that the Court should grant the Motion rather than a stay because "Plaintiff has not made a strong showing that she is likely to succeed on the merits. . ." (*Id*. at p. 6.)

<u>Analysis</u>

The disposition of the instant Motion essentially boils down to whether this Court will follow the authority in *D.G. v. Orange County Social Services Agencies* (2025) 108 Cal.App.5th 465 ("*D.G.*") or *K.C. v. Cty of Merced* (2025) 109 Cal. App. 5th 606 ("*K.C*").

These two recent Court of Appeal opinions have both considered whether a county has discretionary immunity involving reports of sexual abuse by children in foster care families where the county does not investigate or take any action, and reached different results. *D.G.* held that the County did not meet its burden on discretionary immunity at the summary judgment stage. The following month, *K.C.* held that discretionary immunity barred a negligence claim against the county on demurrer.

In *D.G*., the court agreed with the "County that 'decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees' investigations.' [Citation]." (*D.G.*, *supra,* 108 Cal.App.5th at p. 473.) The court thereafter followed California Supreme Court authority holding that discretionary immunity requires a two-part analysis and after finding that the initial decision was discretionary, the court stated that the public entity must then show that "the employee who made the decision at issue 'actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. … [¶] … [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in "discretionary activity" is irrelevant if, in a given case, the employee did not render a considered decision.' (*Johnson v. State of California (1968)* 69 Cal.2d 782, 794–795, fn. 8.)" (*D.G.*, *supra,* 108 Cal.App.5th at 473-474.) The court noted that *Johnson* was followed in *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983. (*D.G.*, *supra,* 108 Cal.App.5th at 474.)

In *D.G*., the court found that the County had not presented any evidence on the second part of this analysis and therefore, had not met its burden on summary judgment. (*Id*. at p. 474.) The court reversed the trial court's granting of summary judgment on immunity grounds. (*Id*. at p. 475.)

In *K.C*., the court also held that "decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. [Citations.]… [D]ecisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such [continued] surveillance and are '[no] less "discretionary" for purposes of the immunity of *Government Code section 820.2* than the original placement decision.' [Citation.]" (*K.C., supr*a, 109 Cal.App.5th at p. 619.)

In *K.C*., the plaintiff argued that "County's demurrer should have been overruled because the operative complaint did not indicate 'an employee of the County made a considered … decision' or 'actually exercised' 'discretion … by the weighing of risks and benefits in deciding on the challenged course of action.' " (*K.C., supr*a, 109 Cal.App.5th at 619.) The court, citing to *Caldwell*, *supra*, 10 Cal.4th at p. 982, explained that an immunity finding " 'requires a showing that "the specific conduct giving rise to the suit" involved an actual exercise of discretion, i.e., a "[conscious] balancing [of] risks and advantages" '[citation.] 'a strictly careful, thorough, formal, or correct evaluation' is not mandatory [citation]." (*K.C., supr*a, 109 Cal.App.5th at p. 619.) The court reviewed the allegations in K.C.'s complaint and held that "under a 'fair reading' of the complaint (*Caldwell, supra,* at p. 984), K.C. essentially alleged County's social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. '[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.' (*Caldwell, supra,* at p. 984, fn. & italics omitted.)". (*K.C., supr*a, 109 Cal.App.5th at pp. 619-

620.)

In *K.C.*, it was alleged that the child made complaints regarding the abuse to her social worker, but no corrective action was taken. (*K.C.* at pp. 614-615.) In *D.G.*, the child told his social worker that "bad people are hurting" him and tried to explain what that meant and there was evidence that the child had a known bedwetting problem. (*D.G*. at pp. 468-469.) In *D.G.*, there was also evidence that another child had made reports regarding the same foster parent that he felt weird taking showers with the foster parent because it was yucky. (*D.G*. at p. 469.) There was no follow up on the child complaints and ultimately the foster parent was allowed to adopt D.G. (*Ibid*.)

On June 25, 2025, the California Supreme Court granted review of *K.C*. on the following issue: "Was plaintiff's complaint alleging that a social worker failed to investigate or act in response to claims of sexual abuse subject to demurrer on the ground that discretionary act immunity under Government Code section 820.2 precluded liability?" The Supreme Court also stated that "[p]ending review, the opinion of the Court of Appeal… may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456, 20 Cal. Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict." (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361, Supreme Court case no. S290435.) The case has been fully briefed, but the California Supreme Court has not scheduled oral argument. Since an opinion is not immediately forthcoming , the instant Court will move forward on this issue based on the current state of the law.

K.C. distinguished *D.G*. by explaining that *D.G*. was decided on summary judgment, not demurrer. (*K.C., supr*a, 109 Cal.App.5th at p. 620, fn. 9.) But allegations in both *K.C.* and *D.G.* were very similar and *K.C*. did not explain what allegation was included in *D.G.* that explains the differing results between the two cases. It appears to the Court that these two cases disagree on how to apply the second step in the discretionary immunity analysis in cases involving abuse of foster care children. Thus, there are conflicting court of appeal opinions, and the Court may decide to follow either *K.C.*'s or *D.G.*'s approach to the discretionary immunity analysis. (*Auto Equity Sales, supra,* 57 Cal.2d at p. 456.)

Plaintiffs argue that *K.C*. was wrongly decided due to missing "the critical distinction between policy-level decisions affecting the future of a child in his or her natural home and ministerial decisions advancing the care and safety of a child who has been placed in foster care in the governmental defendant's custody." (Opposition, p. 11.) Plaintiffs point to *Johnson v. State of California* (1969) 69 Cal.2d 782, where the California Supreme Court held that a County's initial decision to place a child in the foster home may have been discretionary, but that the implementation of that policy, including the determination whether to warn the foster parents of known dangers, was ministerial and not subject to immunity. (Opposition, p. 10; *Johnson*, at pp. 795-796.) Additionally, in *D.G*., the court ruled that the second step in the discretionary immunity analysis—that a conscious and considered decision, weighing risks and advantages in light of the available information—was not shown to have taken place. (Opposition, pp. 8-9, *D.G.*, at p. 474 ["There is simply no evidence in the record that Tanasse, or anyone else, exercised discretion as described in *Johnson* and *Caldwell*."].)

Defendant does not offer a robust analysis for why *D.G*. was incorrectly decided beyond pointing out that it is "inapposite" to our case here because it dealt with a motion for summary judgment, whereas *K.C*. analyzed this issue in the context of a demurrer. (Reply, p. 4:11-17.) Defendant did not mention or offer any argument about *D.G*. in its moving papers. (Motion, pp. 1-9.)

Here, the Court will follow *D.G*. because it is explicitly binding on this Court, unlike *K.C*. (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361 [California Supreme Court granting review].) After the California Supreme Court grants review of a court of appeal decision, as it has for *K.C*., "a published opinion of a Court of Appeal in the matter has ***no binding or precedential effect***, and may be cited for potentially persuasive value only. Any citation to the Court of Appeal opinion must also note the grant of review and any subsequent action by the Supreme Court." (Cal. Rules of Court, rule 8.1115(e)(1), emphasis added.) While the Court is able to "exercise discretion" and "choose between sides" of such a conflict, that is not the most judicious path in close calls like this. (*K.C. v. County of Merced*, *supra*, 333 Cal.Rptr.3d 361.) Further, California Supreme Court authority expressly provides that, "[i]mmunity for 'discretionary' activities serves no purpose except to assure that courts refuse to pass judgment on policy decisions in the province of coordinate branches of government. Accordingly, to be entitled to immunity the state ***must make a showing that such a policy decision, consciously balancing risks and advantages, took place***." (*Johnson v. State of California* (1968) 69 Cal.2d 782, 794, fn. 8, emphasis added; *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 981 ["immunity applies only to deliberate and considered policy decisions, in which a "[conscious] balancing [of] risks and advantages . . . took place."].) Here, as pointed out by Plaintiff, there is nothing in the Complaint that alleges such conduct occurred. Indeed, "facts not alleged are presumed not to exist." (*Kramer v. Intuit, Inc*. (2004) 121 Cal.App.4th 574, 578.)

Additionally, the Complaint here *expressly* alleges that "no employee consciously balanced risks and advantages. . ." (Complaint, ¶ 60.) In *K.C.*, the court ruled, "under a 'fair reading' of the complaint [citation], K.C. essentially alleged County's social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so." (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619-620.) Here, due to the explicit allegations in the Complaint, this Court is unable to give the Complaint a "fair reading" as to what it "essentially" alleges, as the court did in *K.C*. (*K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, 619.) Even if the Complaint did not so explicitly allege that there was no conscious balancing of risks and advantages, California Supreme Court authority holds that "the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place." (*Johnson*, *supra*, 69 Cal.2d at p. 794, fn. 8.) Here, at the pleading stage, a Defendant cannot simply insert facts such as those into consideration that are not alleged in the complaint or subject to judicial notice. (Code Civ. Proc. § 438, subd. (d).) Further, reading something into a complaint that weighs so heavily against a plaintiff in a pleadings challenge would seem to violate the principle that all facts are accepted as true and are given a liberal construction at this stage of litigation. (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Therefore, the Court denies Defendant's motion for judgment on the pleadings as to Plaintiff's Complaint, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C.*

Ruling

The Court **DENIES** Defendant's motion for judgment on the pleadings, without prejudice to Defendant re-filing a motion for judgment on the pleadings should the California Supreme Court affirm *K.C. v. Cty. of Merced* (2025) 109 Cal.App.5th 606, review granted June 5, 2025, S290435.

5. 9:00 AM CASE NUMBER: C24-00262
CASE NAME: THAYDRA JOHNESE VS. MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
HEARING ON SUMMARY MOTION
FILED BY: MOHR GREEN ASSOCIATES L.P. D/B/A HIDDEN CREEK TOWNHOMES
TENTATIVE RULING:

Before the Court is Defendants Mohr Green Associates L.P. dba Hidden Creek Townhomes ("Mohr Green") and Ray, Douglas, Ann & Patrick, Inc., dba RPM Company's ("RPM") Motion for Summary Judgment, or in the Alternative, Summary Adjudication. The Complaint alleges two causes of action: (1) Negligence, and (2) Premises Liability.

Defendants' Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Background

This matter relates to an incident that occurred on July 7, 2023. (UMF 1.) On that date, Plaintiff was employed by Signal 88 Northbay Security Service (Signal 88) as a Mobile Security Officer ("MSU"). (UMF 3.) As part of her employment, Plaintiff was walking through the property known as Hidden Creek Townhomes, in Concord, California ("Property"). (UMF 1, 3, 8.) While making her patrol, Plaintiff observed a grate in her path of travel. (UMF 20.) Because she did not want to step on the grate, she stepped onto a pile of leaves adjacent to the grate. (*Ibid.*) Upon stepping on the leaves, Plaintiff slipped and fell. (*Ibid.*)

At the time of the incident, Defendant Mohr Green owned the Property and Defendant RPM was the property manager. (UMF 5-6.) Signal 88 was contracted by RPM, on behalf of Mohr Green, to provide security services for the Property. (UMF 4, 7.)

Mohr Green and RPM did not directly employ Plaintiff at any time, including on the date of the incident. (UMF 10.) Mohr Green and RPM did not train Plaintiff for her job, nor did they provide her with any equipment. (UMF 12-13, Johnese Decl. ¶ 4.) In addition, Mohr Green and RPM did not direct the manner in which Plaintiff performed her duties as a security guard on the Property. (UMF 11.) Plaintiff's own declaration makes clear: "No one from Mohr Green or RPM directed how I performed by patrol." (Johnese Decl. ¶ 4.) Instead, her employer Signal 88 provided all training and equipment to Plaintiff, but for the flashlight which Plaintiff supplied on her own. (UMF 14-16.)

Mohr Green and RPM had no input as to how Plaintiff would perform her patrols of the Property. (UMF 17.) There were no known witnesses to the incident. (UMF 18.) Plaintiff claims the insufficient lighting, tree branches, and grate contributed to the dangerous condition of the Property. (UMF 19.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisupted and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the ranting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; *if* he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact." (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Initial Considerations

Separate Statement

Initially, the moving party's separate statement "must be in the two-column format" specified in the Rules of Court. (Cal. R. Ct. 3.1350 (d)(3).) The first column must state the "undisputed material facts in the first column ***followed by*** the evidence that establishes those undisputed ***facts in that same column***." (*Ibid.*) Subdivision (h) of the rule provides a picture of a separate statement and opposition thereto should appear:

ISSUE 1—THE FIRST CAUSE OF ACTION FOR NEGLIGENCE IS BARRED BECAUSE PLAINTIFF EXPRESSLY ASSUMED THE RISK OF INJURY	
Moving Party's Undisputed Material Facts and Alleged Supporting Evidence:	Opposing Party's Response and Evidence:
1. Plaintiff was injured while mountain climbing on a trip with Any Company USA. Plaintiff's deposition, 12:3–4.	Undisputed.
2. Before leaving on the mountain climbing trip, plaintiff signed a waiver of liability for acts of negligence. Smith declaration, 5:4-5; waiver of liability, Ex. A to Smith declaration.	Disputed. Plaintiff did not sign the waiver of liability; the signature on the waiver is forged. Jones declaration, 3:6–7.

Defendants' Separate Statement fails to follow this requirement, instead listing the material fact in first column, then the evidence in support in a second column, not in the same column as the material fact – as required by the Rule. This is a minor inconvenience.

Plaintiff's opposition to the separate statement likewise fails to follow the correct format – but leads to a large inconvenience to the Court due to the numerous failures to follow procedure.

First, the opposition separate statement must be in a two-column format wherein the first column sets out the moving party's undisputed facts set out "verbatim on the left side of the page, ***below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits***." (Cal. R. Ct. 3.1350 (f)(1).)

Plaintiff's opposition uses a three-column format which fails to include ***any*** of this information. Instead, the first column merely identifies the UMF by number:

Defense UMF No.	Plaintiff's Response (Admit / Deny / Dispute)	Supporting Evidence Citation
UMF 1	Admit.	Undisputed for purposes of this motion.
UMF 2	Admit.	Undisputed.
UMF 3	Admit.	Undisputed.
UMF 4	**Dispute (in part).** Plaintiff admits a written Security-Services Agreement was executed on or about February 1, 2019; Plaintiff disputes any implication that the	Percy Decl., Exh. A (Security-Services Agreement), § 18; Johnese Decl. ¶¶ 3-4.

Second, on the right side the opposing party must "unequivocally state whether that fact is '***disputed'*** or '***undisputed***.'" (Cal. R. Ct. 3.1350(f)(2).) Instead, in the second column Plaintiff indicates that she "admit[s]" some facts, 'disputes,' 'disputes in part,' or 'disputes as to characterization and legal significance,' other facts, and in one instance, notes the fact is undisputed (UMF 20). There is then a third column where Plaintiff appears to explain her position, sometimes including citations to evidence and objections.

In addition to the above, Plaintiff's Separate Statement appears to misidentify what UMF is being responded to – likely due to the failure to indicate in the first column the fact and evidence as set forth by the moving Defendants. For example, UMF 18 states: “There are no known third-party witnesses to the accident.” Plaintiff’s Response to UMF 18 states this is “[d]isputed as to characterization and legal significance,” and that this “fact does not establish that the hazard was ‘patent’ or that Defendants are not liable.” (Opp. to UMF 18.) It then goes on to discuss issues completely unrelated to the facts at issue – the lack of a third-party witness. The evidence cited in support also fails to address that fact.

Plaintiff’s response to UMF 19, however, states that it is: “Undisputed as to the absence of independent third-party witnesses present at the moment of the fall,” then goes on at length discussing her position thereto. The problem is UMF 19 does not relate to the absence of a third-party witness. UMF 18 does.

Likewise, UMF 20 describes how the incident occurred, citing Plaintiff’s deposition testimony describing the event. Plaintiff’s Opposition indicates that it is undisputed that Plaintiff received workers’ compensation benefits from Signal 88 with exposition explaining why Plaintiff believes that fact is irrelevant. The response does not match the UMF at issue.

The failure of the parties, especially Plaintiff, to properly format their separate statements not only violates Rule 3.1350 but also made the Court’s work significantly more time-consuming. Plaintiff’s failure to have her opposition separate statement properly correspond to the Defendant’s separate statement significantly added to the Court’s work.

“The separate statement ‘provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.’” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (*quoting Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74.) “[T]rial courts have the inherent power to strike proposed ‘undisputed facts’ that fail to comply with statutory requirements and that are formulated so as to impede rather than aid an orderly determination whether the case presents triable material issues of fact.” *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106.)

While the Court will not strike the Parties’ separate statements, the Court cautions the attorneys to follow proper procedure in the future.

<u>Analysis</u>

As noted above, the Complaint asserts two causes of action against Defendants: (1) Negligence, and (2) Premises Liability. Defendants contend both causes of action are barred by the so-call “Privette Doctrine.”

A. <u>The *Privette* Doctrine Generally</u>

In the context of premises liability and negligence claims by an employee of an independent contractor hired by an owner of the premises or general contractor on a development project, the *Privette* doctrine, set forth in *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693, creates a presumption against imposing liability on the owner or general contractor for injuries to the independent contractor’s employee. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 264.)

Under the *Privette* doctrine: "A person or entity hiring an independent contractor (a 'hirer') ordinarily delegates to that independent contractor all responsibility for the safety of the contractor's workers." (*Ibid.*) A hirer for purposes of the *Privette* doctrine includes a landowner. (*Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal. 4th 253, 269–270 [hirer under *Privette* can be a landowner, general contractor, or any other entity that hires an independent contractor].)

The California Supreme Court later expounded on the doctrine in *SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590: "By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes *to the contractor's employees* to ensure the safety of the specific workplace that is the subject of the contract." (*Id.* at 594 [italics in original.]) As the Court stated in *Sandoval*: "Over time, we've recast our primary rationale for the *Privette* doctrine in terms of delegation rather than workers' compensation. Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a 'strong policy' of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation omitted.]" (*Sandoval*, supra, 12 Cal.5th at 270.)

Here, Signal 88 was hired by the Defendants to perform security services at the Property. Plaintiff was employed by Signal 88 to perform security services at various locations including the Property. Signal 88 trained Plaintiff and provided her with all equipment (but for her personal flashlight) used as a security guard at the Property. Plaintiff's injuries arose while she was performing a patrol of the Property. This activity was within the course and scope of her employment with Signal 88.

Plaintiff argues that the agreement between Signal 88 and Defendants "does not expressly state that Defendants delegated responsibility for grounds maintenance, debris removal, grate maintenance, or lighting." That misses the point. Plaintiff was not asked to perform, nor was she performing, any of those activities at the time of her injury. She was performing a security patrol as part of her duties with Signal 88.

Plaintiff also argues that the agreement between Defendants and Signal 88 required Defendants to advise Signal 88 of hazards at the location. There is no evidence, however, that Defendants were aware of any hazards.

Based on the above, Plaintiff's claims fall within the *Privette* Doctrine and are presumptively barred unless Plaintiff can show they fall within an exception to the *Privette* Doctrine.

B. Exceptions to the *Privette* Doctrine

"[T]he *Privette* doctrine has its limits. Sometimes a hirer intends to delegate its responsibilities to the contractor in principle but, by withholding critical safety information, fails to effectively delegate its responsibilities in practice; or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work." (*Sandoval,* supra, 12 Cal.5th at 271.) In those circumstances, the *Privette* presumption "gives way to the two recognized exceptions that apply where delegation is either ineffective or incomplete." (*Ibid.*) One exception is set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and arises based on the hirer's "retained control," and the other in *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659 applies to a landowner-hirer when there is a concealed dangerous condition on the property. (*Ibid.*)

1. <u>The *Hooker/McKown* Exception</u>

The cases *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and *McKown v. Wal-Mart, Inc*. (2002) 27 Cal.4th 219 were decided essentially as companion cases. (*McKown, supra,* 27 Cal.4th at 222.) The Court in *McKown* summarized the holdings of the two decisions and the extension of the *Hooker* exception to equipment provided by the hirer:

> In *Hooker v. Department of Transportation* (2002) 27 Cal. 4th 198 (*Hooker*), a companion to this case, we held that a hirer of an independent contractor is not liable to an employee of the contractor ***merely because the hirer retained control over safety conditions at a worksite***, but that a hirer is liable to an employee of a contractor ***insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries***. In this case, we hold that a hirer is liable to an employee of an independent contractor insofar as ***the hirer's provision of unsafe equipment affirmatively contributes to the employee's injury***.

(*Id.* at 222 emphasis added.)

To meet the *Hooker/McKown* exception, Plaintiff must put forth evidence that Defendants retained control and its retained control affirmatively contributed to his injuries. (*Sandoval*, supra, 12 Cal.5th at 278.) "A hirer's mere authority to prevent or correct a contractor's unsafe practices (retained control) does not, without more, limit the contractor's delegated control over the work. But to the extent that the hirer exerts influence over the contracted work such that the contractor is not entirely free to perform the work in the contractor's own manner (actual exercise), the hirer does limit the contractor's delegated control." (*Ibid.*) The Court in *Sandoval* explained that "retained control" under the *Hooker* exception is not general control over the property or project but means that the hirer "retains a sufficient degree of authority over ***the manner of performance*** of the work entrusted to the contractor. (Emphasis added.)" (*Id.* at 274-276 [citing authorities rejecting general control over the premises as retained control to support hirer liability to employees of subcontractors].)

Actual exercise of the retained control "requires that the hirer in fact 'involve itself, such as through direction, participation, or induced reliance. [Citation omitted.]" (*Sandoval*, supra, 12 Cal.5th at 276.) "[T]he affirmative contribution requirement can be satisfied ***only if*** the hirer in some respect induced – not just failed to prevent – the contractor's injury-causing conduct." (*Id.* at 277 citing examples.) Active participation is sufficient but "is not necessarily the only way" this requirement can be met. (*Id*. at 276, fn. 6.) The Court also explained that "neither 'actual exercise' nor 'affirmative contribution' requires that the hirer's *negligence* (if any) consist of an affirmative act." (*Id*. at 277.) The theory underlying the *Hooker* exception is that the delegation of tort duties to the independent contractor is "partial" or "incomplete" because the hirer retains control over some aspect of the work. (*Id.* at 271.)

Plaintiff was injured when she slipped and fell while performing a security patrol at the Property.

There is no evidence that Defendants contributed to Plaintiff's injuries. It is undisputed that Signal 88 employed Plaintiff and provided all her training. Defendants did not have any control over the safety measures Signal 88 implemented, nor any control as to how Plaintiff performed her work. As Plaintiff's own declaration explains: "No one from Mohr Green or RPM directed how I performed my patrol." (¶ 4.)

Defendants retain control over Plaintiff's work or provide her with tools or equipment for her job. Instead, Signal 88 provided all her equipment but for the flashlight, which Plaintiff provided on her own. In other words, there is no evidence that Defendants "retained control over safety conditions at the worksite," much less that any actions by Defendants "affirmatively contributed to" Plaintiff's injuries.

There is no evidence to support this exception to the *Privette* Doctrine applies.

2. The *Kinsman* Exception

Under the *Kinsman* exception which applies when the hirer is also the landowner, the landowner-hirer may owe tort duties to the employee of a subcontractor if the owner-hirer fails to disclose to the contractor a concealed hazard on the property. (*Sandoval, supra,* 12 Cal.5th at 271-272.) Under the Kinsman exception, "a landowner who hires an independent contractor may be liable if the landowner knew, or should have known, of a concealed hazard on the property that the contractor did not know of and could not have reasonably discovered, and the landowner failed to warn the contractor of the hazard." (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 38 [citing *Kinsman, supra*, 37 Cal.4th at 664].)

For purposes of *Kinsman*, a "concealed hazard" can be one where the existence of the hazard is concealed, or where the hazard "is in some way apparent but whose dangerousness is concealed. [Citation omitted.]" (*Sandoval*, supra, 12 Cal.5th at 272.) The concealed hazard under the *Kinsman* exception must be "a hazard that the hirer either knows or reasonably should know exists, and that the contractor does not know exists and could not reasonably discover without the hirer's disclosure. [Citation omitted.]" (*Ibid.*) As the Court recently explained its holding in *Kinsman*: "We based our holding on the premises liability rule that a landowner has a duty to warn a visitor of a dangerous condition on the property '[]so that [the visitor], like the host, will be in a position to take special precautions when [the visitor] comes in contact with it.'[] [Citations, internal quotation marks omitted.]" (*Gonzalez,* supra, 12 Cal.5th at 43.)

There is no evidence to support a finding that there was a concealed hazard that Defendants were aware of and did not disclose. To begin with, there is no evidence that Defendants were aware of the alleged conditions of the Property – *i.e.* the insufficient lighting and existence of the leaves on the ground. Even if Defendants were aware of those conditions, there is no evidence that Signal 88 did not know they existed nor that it "could not reasonably discover with [Defendant's] disclosure." (*Sandoval*, supra, 12 Cal.5th at 272.)

Plaintiff's own declaration indicates that the alleged 'dangerous condition' was reasonably discoverable:

> As I walked along the walkway, I came upon a metal grate set in the concrete. Leaves and branches covered the grate and the ground around it. Because I did not want to step on the grate, I stepped onto a pile of leaves next to it. The leaves gave way and I slipped and fell.

"Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (*Kinsman*, supra, 37 Cal.4th at 673.) The grate and leaves were obvious according to Plaintiff's own statement – since she clearly saw them. There is also no evidence that Plaintiff was required to take the path she took to complete her patrol. If she saw what looked to be a 'dangerous condition' in the path before her she could have taken a different route to avoid the hazard. There is no evidence indicating that Defendants required Plaintiff to walk down this particular path as part of her patrol. Instead, as noted above, Plaintiff declares that neither Defendant "directed how I performed my patrol."

There is no evidence to support this exception to the *Privette* Doctrine applied.

<u>Evidentiary Issues</u>

Plaintiff's Objections

The Court is concerned that several of Plaintiff's objections are completely without merit in that they are to facts which Plaintiff herself admits in her declaration. For example, objection 2 is to the statement that "Mohr Green and RPM did not provide any directions to Thaydra Johnese on how she was to perform her work…." In her declaration, Plaintiff states: "No one from Mohn Green or RPM directed how I perform my patrol." (¶ 4.)

Likewise, objections 3 and 4 are to statements indicating that Defendants did not provide Plaintiff with any training or equipment. Again, Plaintiff's declaration states: "Signal 88, not Mohr Green or RPM, trained me, set my assignments, and provided the equipment I used on patrol." (¶ 4.)

Counsel is reminded of its duty of candor to the Court and should not make baseless objections to evidence that is not in dispute. (See e.g. *Ambriz v. Kelegian* (2007) 146 Cal.App.4th 1519, 1527-28 finding that raising a lack of authentication objection to "an excerpt from the same deposition defendants themselves relied upon in their motion is ***disingenuous*,**" unless it can be shown the excerpt is not from the transcript.")

Objections to Percy Decl.

Objection 1: Overruled.
Objection 2: Overruled.
Objection 3: Overruled.
Objection 4: Overruled.
Objection 5: Overruled.
Objection 6: Overruled.

Objection to UMFs

Initially, Plaintiff's objections violation California Rules of Court, Rule 3.1354(b) by objecting to the undisputed material facts themselves, and not the actual evidence underlying those UMFs. They must be overruled on that basis alone. Substantively, they are overruled as well.

<u>Conclusion</u>

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

6. 9:00 AM CASE NUMBER: C24-01532
CASE NAME: LUIS DEL RIO ROSALES VS. WHOLESALE 209, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: DEL RIO ROSALES, LUIS A.
<u>*TENTATIVE RULING:*</u>

Plaintiff Luis del Rio Rosales moves for preliminary approval of his class action and PAGA settlement with defendant Wholesale 209, LLC.

A. **Background and Settlement Terms**

The original complaint was filed by Plaintiff on June 12, 2024, raising PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff included class action claims based on similar allegations.

The settlement would create a gross settlement fund of $375,000. The class representative payment to plaintiff would be $7,500. Attorney's fees would be $125,000 (33 1/3% of the settlement). Litigation costs would not exceed $20,000. The settlement administrator's costs will not exceed $2,900. PAGA penalties would be $20,000, resulting in a payment of $15,000 to the LWDA and $5,000 to the aggrieved employees. The net amount paid directly to the class members would be about $211,050 (NSF. The fund is non-reversionary. Based on the estimated class size of 88, the average net payment for each class member is approximately $2,398.30. La Raza Centro Legal would be the *cy pres* recipient.

The proposed settlement would certify a class of all current and former hourly-paid or non-exempt employees employed by Defendant in California during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The Agreement provides that if the total value of uncashed settlement checks equals 20% or more of the NSF, the Settlement Administrator will conduct one second distribution on a proportional basis to participating Settlement Class Members who negotiated their initial checks. If the total value of uncashed checks is less than 20% of the NSF, the remaining balance will be distributed to the *cy pres* recipient. Any funds remaining unclaimed after the second distribution, if any, will also be distributed to *cy pres*.

The settlement contains release language covering all claims "arising out of the facts, circumstances, and primary rights at issue in the LWDA Letter and the Complaint," as well as claims that could have been asserted based on those pleaded facts. The limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included two sessions with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees**

Plaintiff seeks 33 1/3% of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator's fees will be considered at final approval.

Similarly, the requested representative payment of $7,500 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. **Conclusion**

The Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. The motion is granted.

Counsel are directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

7. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF SHERI KELLEHER AND PAUL JONATHAN
FILED BY: SANDERS RANCH HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Before the Court are a demurrer and a motion to strike, filed by cross-defendant Sanders

Ranch Homeowners Association ("HOA"), to the cross-complaint filed by cross-complainants Sheri Kelleher and Paul Crinks. The **demurrer is sustained with leave to amend**, as discussed below. The **motion to strike is denied as moot**. Cross-complainants shall file any amended cross-complaint on or before July 27, 2026.

I. Factual Background

The initial complaint by plaintiffs, American MB Federal Investments and Mario Mapoy, involves claims to an easement over the property of cross-complainants. Cross-complainants' properties are within the boundaries of defendant HOA, which they now sue, along with other defendants, alleging: (1) Breach of Contract; (2) Breach of Implied Warranty of Good Faith and Fair Dealing; (3) Deceit, Suppression of Material Facts – Civil Code section 1710(3); (4) Negligent Misrepresentation; (5) Breach of Duty to Advise and Disclose/Breach of Duty to be Honest and Truthful; (6) Breach of Fiduciary Duty; (7) Equitable Indemnification; and (8) Equitable Contribution.

Only the fourth through the eighth causes of action are alleged against the HOA, each of which the HOA demurs to in the moving papers.

After meeting and conferring with cross-complainants (see Declaration of Deena O. Zaki) in compliance with Code of Civil Procedure sections 430.41 (a) and 435.5 (a), the HOA filed the present demurrer to the fourth through eighth causes of action, and a motion to strike requests for attorneys' fees and punitive damages. Cross-complainants oppose both motions. At the time of writing, no reply in support of either motion has been received.

II. Demurrer Standard

In reviewing the sufficiency of a complaint (or, as here, a cross-complaint), all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

III. Discussion of Demurrer

A. Fourth Cause of Action (Negligent Misrepresentation)

The HOA demurs to the fourth cause of action on the basis that the cross-complaint fails to state sufficient facts to constitute negligent misrepresentation by the HOA. The HOA specifically points to the asserted lack of allegations concerning reliance, any intent to induce such reliance, and the lack of reasonable grounds for believing the representations were true.

Cross-complainants respond that the allegations are sufficient because, among other allegations (many of which appear in the demurrer memorandum itself), they have stated that "[p]rior to Property purchase […]the HOA […] assured Cross-Complainants that [it] had investigated the facts and represented to the Cross-Complainants that no valid recorded easements or claims of easements existed against Property." This paragraph in the cross-complaint goes on to address reliance as well, stating that cross-complainants relied on these representations by entering into the purchase agreement for their property. (Cross-Complaint, ¶18.)

Negligent misrepresentation requires an assertion of fact, falsity of that assertion, and the tortfeasor's lack of reasonable grounds for believing the assertion to be true. (*SI 59 LLC v. Variel Warner Ventures, LLC* (2018) 29 Cal.App.5th 146, 154.) It also requires the tortfeasor's intent to induce reliance, justifiable reliance by the person to whom the false assertion of fact was made, and damages to that person. (*Ibid*.) Each element in a cause of action for negligent misrepresentation must be factually and specifically alleged. (*Cadlo v. Owens-Illinois, Inc*. (2004) 125 Cal.App.4th 513, 519, citation omitted.) The policy of liberal construction of pleadings is not generally invoked to sustain a misrepresentation pleading defective in any material respect. (*Ibid*.)

Here, cross-complainants allege that the HOA asserted no easement or claims of easements existed against Property. (Cross-Complaint, ¶25.) They do not allege who made such representation or that it was made with the intent to induce reliance.

"[A] plaintiff must plead facts which show how, when, where, to whom, and by what means the representations were made. When the defendant is a corporate defendant, the plaintiff must further allege the names of the persons who made the representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Wald v. TruSpeed Motorcars, LLC* (2010) 184 Cal.App.4th 378, 393-394, citations omitted; see also *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

Further, while plaintiffs do sufficiently allege that they relied on the misrepresentations by purchasing their property, the HOA must have intended that they rely. This does not appear to be pleaded anywhere.

As to the argument that the cross-complaint fails to allege the lack of a reasonable basis for the misrepresentations, the Court disagrees. Cross-defendants allege that the representations "were not warranted by the information that [Defendants] possessed […]." This is sufficient.

Because the cross-complaint does not allege an intent to induce reliance, and because it does not allege who from the HOA made the negligent misrepresentations, the demurrer is sustained with respect to the fourth cause of action, with leave to amend.

B. Fifth and Sixth Causes of Action (Breach of Duty to Advise and Disclose/ be Honest and Truthful; Breach of Fiduciary Duty)

The HOA demurs to the fifth cause of action on the basis that any misrepresentation alleged was prior to the arising of any fiduciary relationship with cross-complainants because they were only members of the HOA following their purchase, and because no duty to disclose any information existed before that time.

Cross-complainants respond that they have alleged ongoing misrepresentations even *after* they became owners and members of the HOA. However, no representations made after purchase would result in damages pursuant to their existing theory (that they relied on said misrepresentations by purchasing the property).

Cross-complainants also argue they have alleged conspiracy, but the elements of conspiracy include (1) the formation and operation of the conspiracy, (2) a wrongful act done in the furtherance of the conspiracy, and (3) the resulting damage to the plaintiff. (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd*. (1994) 7 Cal.4th503, 510-511.)

As to the formation element, two or more persons must agree on a common plan to commit a tortious act. (*Kidron v. Movie Acquisition Corporation* (1995) 40 Cal.App.4th 1571, 1582.) The coconspirators must have "actual knowledge that a tort is planned and concur in the tortious scheme with knowledge of its unlawful purpose." (*Ibid*.) Knowledge and intent may be inferred from the circumstances, including the nature of the acts, the relationship among the parties, and the interest of the conspirators, but mere suspicions without evidence will not support conspiracy. (*Ibid*.) Here, there is no inference that an HOA had any interest in the sale of a property. Such interest is also not explicitly alleged. The only references to a conspiracy are conclusory and relate to alleged misrepresentations by others that purportedly caused cross-complainants to purchase their property. Without more, the cross-complaint does not adequately allege that the HOA participated in a conspiracy to conceal adverse claims on title.

Accordingly, the demurrer as to this cause of action is sustained, with leave to amend.

C. Seventh and Eighth Causes of Action (Equitable Indemnification and Equitable Contribution)

The HOA demurs to these causes of action on the basis that there is no underlying liability that would give rise to them. The HOA points to plaintiffs' principal complaint, which alleges only quiet title and declaratory relief causes of action.

Cross-complainants, without citing any authority, respond that plaintiffs also seek "costs of suit," and these are damages for purposes of these causes of action.

"It is well settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff's injury." (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036, 1040, citations omitted.) With limited exception, there must be some basis for tort liability against the proposed indemnitor. (*Ibid*.) Equitable contribution also applies with respect to a "right to recover from a co-obligor" a portion of a "money judgment." (See *Crowley Maritime Corp. v. Boston Old Colony Ins. Co*. (2008) 158 Cal.App.4th 1061, 1067; Code Civ. Proc., § 875 (a) [where money judgment rendered jointly against two or more defendants in a tort action, there is right of contribution among them].)

Because the underlying complaint in this action is not one for money damages, the demurrer is sustained with respect to the seventh and eighth causes of action, with leave to amend.

8. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF CROSS-COMPLAINT OF SHERI KELLEHER AND PAUL JONATHAN**
FILED BY: SANDERS RANCH HOMEOWNERS ASSOCIATION
<u>*TENTATIVE RULING:*</u>

Denied as moot. Please see Line 7.

9. 9:00 AM CASE NUMBER: C25-01047
CASE NAME: IRIS FLORES HERNANDEZ VS. SIPRIANO ORELLANA FUENTES
***HEARING ON MOTION IN RE: COMPEL DEFENDANT'S RESPONSE TO PLAINTIFFS' DEMAND FOR INITIAL DISCLOSURES UNDER CAL. CODE OF CIV. PROC. 2016.090 AND FOR MONETARY SANCTIONS**
FILED BY: FLORES HERNANDEZ, IRIS
<u>*TENTATIVE RULING:*</u>

On October 15, 2025, Plaintiffs made a demand pursuant to Code of Civil Procedure 2016.090 for Initial Disclosures. They made this demand by email. They have not received a response to their demand. They filed this Motion on January 23, 2026. The Court received no timely opposition. It would appear that Defendant has failed to comply with its discovery obligations. Defendant is ordered to provide initial disclosures pursuant to section 2016.090 within 15 days of the date of hearing. Defendant is also ordered to pay $1,500 in sanctions within 30 days of the date of hearing. C.C.P. § 2023.030.

10. 9:00 AM CASE NUMBER: C25-01307
CASE NAME: MARKEE WEBB VS. SAN PABLO MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SAN PABLO MEDICAL CENTER
TENTATIVE RULING:

The Demurrer of Defendants Jim Pehling, M.D. (erroneously sued as Jim Phlying) and San Pablo Medical Center to the First Amended Complaint of Plaintiff Markee Webb is **sustained, with leave to amend**.

BACKGROUND

Plaintiff Markee Webb filed his original complaint against Jim Pehling, M.D. and San Pablo Medical Center on May 8, 2025, using a Judicial Council form complaint for breach of contract. The complaint attaches medical records from West County Health Center reflecting two visits. In January 2024, Plaintiff was seen for health care maintenance, depression, and obesity. In May 2024, Plaintiff was seen for a cerebrovascular accident and hypertension, resulting in medication changes and advice to lose weight. Paragraph five of the form complaint, which calls for an allegation of compliance with the Government Claims Act (GCA), was left blank.

The record does not reflect a proof of service of the original complaint. Nevertheless, Defendants filed and served a demurrer to the original complaint on June 16, 2025, noticed for hearing on October 16, 2025. Before that hearing occurred, Plaintiff filed and served a first amended complaint (FAC) on October 3, 2025, mooting the demurrer. As with the original complaint, Plaintiff's FAC does not allege compliance with the GCA.

Plaintiff presented a government claim to the Clerk of the Board of Supervisors of Contra Costa County on or about September 23, 2025. In response to the claim form's question "When did the damage or injury occur," Plaintiff wrote "1/5/24 - and ongoing." The Clerk rejected the claim on October 8, 2025 on the ground that it was not presented within six months after the event or occurrence as is required by Government Code sections 901 and 911.2. The Clerk's notice advised Plaintiff that his "only recourse at this time is to apply without delay to the Board of Supervisors of Contra Costa County for leave to present a late claim" under Government Code sections 911.4 to 912.2 and 946.6. It does not appear that Plaintiff filed an application with the County for leave to present a late claim.

Defendants demur to the FAC that Plaintiff failed to allege facts demonstrating or excusing compliance with the GCA. Defendants argue that no amendment can cure this defect because plaintiff filed suit before presenting any claim, and because the claim itself was presented outside the six-month period set by Government Code section 911.2, measured from an accrual date of January 5, 2024.

Defendants assert that a plaintiff cannot file suit and then present a claim to cure the defect after the fact.

In opposition, Plaintiff submits his own declaration stating that he suffered two strokes that caused cognitive impairment affecting his ability to understand legal deadlines or comply with filing requirements. Plaintiff states he had no legal assistance or family support during this period of incapacity, and that his failure to file a government claim was caused by medical incapacity. The declaration does not reference any government claim presented before the original complaint was filed on May 8, 2025, nor any claim other than the one presented in September 2025.

Defendants do not further address the timeliness of Plaintiff's government claim in their reply, but instead argue that nothing in Plaintiff's declaration excuses his having filed suit before presenting a government claim.

ANALYSIS

I. Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ." (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

"If there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

II. Meet and Confer

Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The demurrer is not accompanied by a meet and confer declaration as required by section 430.31. Thus, the court is unable to determine whether the parties met and conferred. The Court will proceed to analyze the demurrer on its merits. (See Code Civ. Proc. § 430.41, subd. (a)(4) ["[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer."].) However, a failure to comply in the future may result in the demurrer being placed off calendar.

III. Request for Judicial Notice

Defendants' request for judicial notice of Plaintiff's government claim for damages submitted to the Clerk of the Board of Supervisors of Contra Costa County on or about September 23, 2025 is unopposed, and is granted. The court may take judicial notice of the filing and contents of a government claim, but not the truth of the claim. (See Evid. Code, § 452, subd. (c); *Ludwig v. Superior Court* (1995) 37 Cal.App.4th 8, 14; *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1.)

Accrual for purposes of the GCA is the date that would apply under the statute of limitations governing a dispute between private litigants (*Shirk v. Vista Unified School Dist.* (2007) 42 Cal.4th 201, 208–209), which for a medical malpractice claim is governed by Code of Civil Procedure section 340.5. The Court takes notice of what the claim states, including the date Plaintiff identified in response to the claim form's question asking when the damage or injury occurred, but it does not take notice of that date as the legally operative date of accrual.

IV. Discussion

A preliminary note regarding the individual defendant. The claims presentation requirement applies to a suit against a public employee for acts within the scope of employment. (Gov. Code § 950.2.) The FAC designates the medical center as a public entity but does not expressly allege that Dr. Pehling is its employee. Defendants nonetheless characterize this relationship as "undisputable." (MPA, p. 3:15-20 ["Dr. Pehling is undisputably an employee of a public entity (FAC ¶4)"].) Paragraph four does not say that. Still, the medical records attached to the FAC show that Dr. Pehling treated Plaintiff at the West County Health Center, a Contra Costa Health facility. The Court will treat the claims presentation requirement as applicable to both Defendants unless and until Plaintiff alleges otherwise. If Plaintiff takes the position that Dr. Pehling was not a public employee acting in the scope of his employment, he should state that in any amended complaint he files.

"[Government Code] [s]ection 905 requires the presentation of 'all claims for money or damages against local public entities,' subject to exceptions not relevant here." (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738, City of Stockton.) Government Code section 945.4 provides that "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented … until a written claim therefor has been presented to the public entity and has been acted upon … or has been deemed to have been rejected…." "'Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.'" (*City of Stockton*, *supra*, 42 Cal.4th at pp. 737-738 [quoting *State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1239].)

"Unless a specific exception applies, [a] suit for 'money or damages' includes all actions where the plaintiff is seeking monetary relief, regardless whether the action is founded in tort, contract or some other theory." (*Lozada v. City and County of San Francisco* (2006) 145 Cal.App.4th 1139, 1152.) "Timely claim presentation is not merely a procedural requirement, but is…. an element of the plaintiff's cause of action…. [¶] Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity." (*Shirk*, *supra*, 42 Cal.4th at p. 209, superseded by statute on other grounds as stated in *Rubenstein v. Doe No. 1* (2017) 3 Cal.5th 903, 905-906.)

The FAC does not allege compliance with the GCA. Paragraph five of the Judicial Council form, which calls for this allegation, is blank. This omission is independently sufficient to sustain the demurrer. (*Bodde*, *supra*, 32 Cal.4th at p. 1239.) The remaining question is whether Plaintiff can amend his pleading to allege that he complied with the CGA or was excused from complying.

A. Timeliness

Defendants' moving papers argue that Plaintiff's government claim was untimely, measured from the "1/5/24" date he wrote on his claim form. Untimeliness is not established on this record. Untimeliness must appear on the face of the complaint or from matters properly subject to judicial notice and the date written on the claim form does not establish accrual as a matter of law. That date corresponds to an office visit; the stroke Plaintiff attributes to the visit occurred months later. Accrual of a medical malpractice claim is a substantive determination governed by Code of Civil Procedure section 340.5, which no party has briefed. The most that can be said with confidence is that Plaintiff had discovered his injury and its claimed wrongful cause no later than May 8, 2025, when he filed this action, designating it a medical malpractice matter on the civil case cover sheet. Measured from that date, the September 2025 claim would fall within section 911.2's six-month period.

Because untimeliness is not established as a matter of law, this is not grounds to sustain the demurrer.

B. Prematurity

Government Code section 945.4 provides that no suit may be brought against a public entity until a claim has been presented and has been acted upon or deemed rejected. Plaintiff filed his original complaint on May 8, 2025. He did not present any claim until on or about September 23, 2025, more than four months later. His declaration does not reference any earlier claim. Instead, it describes a period of incapacity that includes, but is not limited to, that date, and appears to concede that the September 2025 claim was the only one he presented. Defendants argue that filing suit prematurely and before submitting a government claim is a defect that cannot be cured.

In *Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 215-16 (Lowry), the court reviewed a trial court's grant of judgment on the pleadings, where the plaintiff filed a complaint and a petition to file a late claim on the same day. The Court held "[the plaintiff] failed to comply with the Act because he filed a complaint before his claim was rejected". (*Lowry*, *supra*, 56 Cal.App.5th at p. 219.) The court declined to follow "older Court of Appeal cases that found compliance with the Act even though complaints were filed prematurely, before the claims were rejected … [because] the rationale of those cases is not consistent with more recent decisions of our Supreme Court." (*Ibid*.) Specifically, it held that the California Supreme Court's decision in *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983 (DiCampli-Mintz) "requires that claims 'satisfy the express … language of the statute.'" (*Id*. at p. 220 [quoting *DiCampli-Mintz*, *supra*, 55 Cal.4th at p. 987].) Because it rejected substantial compliance, the court held, "[The plaintiff's] noncompliance with the Act cannot be cured by amending the complaint to allege he complied." (*Id*. at p. 221.)

The doctrine of substantial compliance provides an exception. In *Malear v. State of California* (2023) 89 Cal.App.5th 213, the plaintiff presented a government claim on July 15, 2020, and filed his original complaint on July 27, 2020, after presenting the claim, but before it had been actually or deemed rejected. (*Id*. at p. 219.) The claim was rejected two days later. (*Ibid*.) Nearly three months after that rejection, the plaintiff filed a first amended complaint, as of right under Code of Civil Procedure section 472, adding allegations that his claim had since been denied, and this occurred before defendants had been served with either complaint. (*Id*. at pp. 219, 221.)

The court stated that because "an amended complaint supersedes all prior complaints," the original "cease[d] to have any effect either as a pleading or as a basis for judgment," and because "the mere filing of a premature complaint does not... cause the public entity to incur litigation costs, since the deadlines and burdens of litigation are triggered by service of process," the lawsuit "did not begin in earnest" until service of the amended complaint, by which point the entity's investigation and consideration of the claim was complete. (*Id*. at pp. 221, 224–225.) The court stated that substantial compliance will apply "if the original complaint is not served before an amended complaint alleging the requisite denial of a government claim is filed." (*Id*. at pp. 225–226.)

In *Harland v. City of West Hollywood* (2026) 120 Cal.App.5th 1166, decided after Defendants filed their opening memorandum but before the reply, the Court of Appeal applied *Malear's* test and found substantial compliance unavailable where the plaintiff had served her original complaint before filing an amended complaint alleging denial of her claim, reasoning that the plaintiff had "deprived the City of the opportunity to investigate her claim before forcing it into litigation." (*Id*. at pp. 1171–1172.)

Plaintiff's circumstances do not appear to fit within *Malear's* exception as currently pled. Unlike the plaintiff in *Malear,* plaintiff appears to have presented no claim before filing suit. Unlike the amended complaint in *Malear*, which alleged that the claim had been presented and denied, the FAC does not allege that any claim was presented. Whether defendants were served with the original complaint is not established on this record. If it was served, it would appear that *Malear* and *Harland* foreclose the substantial compliance doctrine.

The Court does not resolve that question because it is not yet presented. At the pleading stage, an allegation of compliance with the applicable claims statutes is sufficient. (*Esparza v. Kaweah Delta Dist. Hospital* (2016) 3 Cal.App.5th 547, 554.) The problem is that Plaintiff has alleged nothing at all. If Plaintiff amends to allege compliance, Defendants may renew the argument by demurrer or other appropriate motion, at which point the court can decide whether the allegation survives.

C. Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Youngman*, *supra*, at p. 245.)

The Court is not prepared to find, as a matter of law, that no amendment could cure the defects in the FAC. The failure to allege compliance or excuse is itself curable, and Plaintiff, who is self-represented, has not had to plead compliance or excuse in response to a ruling on the merits of a demurrer. Plaintiff should have the opportunity to allege his compliance with the GCA or excuse for noncompliance, including facts concerning his claimed incapacity.

DISPOSITION

Defendants' demurrer is **sustained, with leave to amend**. Defendants shall prepare the order and file and serve notice of its entry. Plaintiff has 45 days from notice of entry of order in which to file and serve an amended complaint. As with any self-represented litigant, Plaintiff may wish to consult an attorney regarding this matter.

11. 9:00 AM CASE NUMBER: C25-02858
CASE NAME: CHRISTOPHER DOUANGMALA VS. WILLIAM TURMAN
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: TURMAN, WILLIAM
TENTATIVE RULING:

Defendants United Parcel Service, Inc. and William Turman's demurrer to the first amended complaint is **overruled as to two, three and eleven, and sustained with leave to amend as to one, four, six, seven, eight and twelve.** Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

Plaintiff worked at UPS since 2012. (FAC ¶12.) Plaintiff worked as a business supervisor from 2017 to 2024 and his evaluations showed steady, positive performance. (FAC ¶14.)

Plaintiff alleges that in early 2025, he and his partner welcomed their first child. (FAC ¶15.) Plaintiff applied for and was granted paternity leave under CRFA from February 11, 2025, to March 3, 2025, and from April 15, 2025, to May 3, 2025. (FAC ¶16.) When Plaintiff returned to work in April 2025, he learned that UPS was shutting down his work site. (FAC ¶19.)

Plaintiff requested additional paternity leave. Plaintiff's manager, Turman, told Plaintiff "that it was not a good time for Plaintiff to take leave" and instead encouraged him to apply for jobs given the impending facility closure. (FAC ¶20.) Plaintiff still applied for additional leave and took two weeks of paternity leave. (FAC ¶¶20-21.) While on leave, Plaintiff sought alternative roles at UPS and was granted an interview. (FAC ¶¶22-23.) Plaintiff was informed that he did not get the position and was also told that he was not selected for interviews for any other business supervisor roles in the area. (FAC ¶¶23-24.) Plaintiff was referred to interview for alternative roles that were not comparable or appropriate. (FAC ¶25.)

On June 30, 2025, Plaintiff's employment was terminated. (FAC ¶26.) Plaintiff was the only supervisor in his group who was not offered a comparable position following the restructuring, despite his strong performance history. (FAC ¶27.) Every other employee at his location received another position at UPS. (FAC ¶28.) UPS is actively hiring employees for many positions, including business supervisors. (FAC ¶29.)

Defendants demur to the following causes of action based upon the failure to state sufficient facts to constitute a cause of action and on uncertainty, Code of Civil Procedure section 430.10(e) and (f): (1) interference with CFRA, (2) retaliation under CFRA, (3) FEHA sex discrimination, (4) FEHA retaliation, (6) unpaid wages, (7) waiting time penalties, (8) inaccurate wage statements, (11) breach of contract and (12) breach of the covenant of good faith and fair dealing.

Interference with CFRA (C/A 1)

Defendants argue that the CFRA interference requires showing that the employer denied the employee's entitlement to CFRA qualifying leave. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 250.)

Plaintiff argues that interference is not limited to a denial of a leave requests, but also includes an employer's failure to reinstate an employee to the same or a comparable position at the end of CFRA leave without an independent reason for termination, and using the taking of leave as a negative factor in employment decisions violates CFRA. Plaintiff relies on *Richey v. AutoNation, Inc.* (2015) 60 Cal.4th 909, 920, Gov. Code § 12945.2; Cal. Code Regs., tit. 2, § 11089 and CACI No. 2600. However, Plaintiff's argument focuses mostly on retaliation under CFRA as opposed to interference with CFRA leave.

"CFRA has two principal components: a right to leave of up to 12 weeks in any 12-month period to care for a family member or for the employee's own medical condition (Gov. Code, § 12945.2, subds. (a), (c)(2)(A)), and a right to reinstatement in the same, or a comparable, position at the end of the leave (Gov. Code, § 12945.2, subd. (a))." (*Richey v. AutoNation, Inc.* (2015) 60 Cal.4th 909, 919.) " 'Interference' claims prevent employers from wrongly interfering with employees' approved leaves of absence, and 'retaliation' or 'discrimination' claims prevent employers from terminating or otherwise taking action against employees because they exercise those rights. [Citations.]" (*Id*. at 920.)

To state a claim for CFRA interference, a plaintiff must allege (1) entitlement to CFRA leave and (2) the employer's interference with or denial of those rights. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 601.) "CFRA makes it unlawful for an employer 'to interfere with, restrain, or deny the exercise of, or the attempt to exercise, any right' provided by CFRA. ([Gov. Code] § 12945.2, subd. (t).)" (*Moore, supra,* 248 Cal.App.4th at 250.)

Here, the facts alleged show that Plaintiff was given CFRA leave when he requested it. The only facts addressing interference are that Plaintiff's supervisor told Plaintiff "that it was not a good time for PLAINTIFF to take leave; instead, PLAINTIFF should be focused on fighting for a job." (FAC ¶20.) Plaintiff cites no authority where a supervisor telling an employee that it was not a good time to take leave because the worksite was closing, and yet leave was still granted without further pushback, is sufficient to state an interference claim.

The demurrer to cause of action one is sustained with leave to amend.

Retaliation under CFRA (C/A 2)

“The elements of a cause of action for retaliation in violation of CFRA are ‘“(1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA [leave]; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA [leave].”’ [Citation.]” (*Moore, supra,* 248 Cal.App.4th at 248.)

Defendants argue that Plaintiff has not alleged facts showing he suffered an adverse employment action because he took CFRA leave. Plaintiff disagrees.

The facts alleged show that Plaintiff took CFRA leave at the same time his worksite was closing and his employment was terminated within weeks of returning from CFRA leave. Further, Plaintiff alleges that he was the only one from his worksite not given another job at UPS and that UPS has openings for business supervisors, which was Plaintiff’s last position at UPS. These facts are sufficient to state a retaliation claim.

The demurrer to cause of action two is overruled.

<u>Sex Discrimination (C/A 3)</u>

To state a discrimination claim under FEHA, the plaintiff must alleged “that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. [Citations.]” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355; see also, *Soria, supra,* 5 Cal.App.5th at 583.)

Defendant argues that Plaintiff, a male, cannot allege a claim for sex discrimination and has not sufficiently stated a claim for familial status discrimination.

Plaintiff points out that FEHA sex discrimination and harassment includes where a person does not match a sex stereotype and is consequently discriminated or harassed because of it. (*Nichols v. Azteca Rest. Enters.* (9th Cir. 2001) 256 F.3d 864, 874.) In *Nichols*, the court held that a man could state a claim for sex harassment because he alleges he was harassed for being too effeminate and not conforming to a male stereotype. (*Ibid*.)

Here, Plaintiff alleges that once UPS was informed that he was expecting a child, the UPS managers withdrew support for Plaintiff and eventually terminated him because of his family responsibilities, a perceived failure to comply with masculine ideal worker norms. (FAC ¶50.) In addition, it is alleged that Plaintiff took CFRA leave several times and was the only employee not given another job within UPS when their location closed.

Although these allegations suggest the attempt to state a claim under familial status, Plaintiff has clarified that his theory is sex discrimination based on the failure to conform to gender stereotypes. The Court finds that these allegations are sufficient to state a claim for sex discrimination. It is alleged that Defendants treated Plaintiff differently after he, a male, took CFRA leave to care for his child, which was against the masculine norm.

The demurrer to cause of action three is overruled.

Retaliation under FEHA (C/A 4)

To plead a cause of action for retaliation under the FEHA, Plaintiff must plead sufficient facts to "show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link between the protected activity and the employer's action." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

Defendants argue that the FEHA retaliation claim is duplicative of the CFRA retaliation claim. The claims may be based upon the same facts, but CFRA and FEHA retaliation claims are distinct theories.

Defendants also argue that seeking and taking parental leave is not a protected activity under Government Code section 12940. Plaintiff disagrees, citing to Government Code section 12945.2.

Protected activity in a FEHA retaliation claim includes, where the employee opposes conduct that is unlawful or where the employee reasonably believes the conduct is unlawful. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042; Gov. Code §12940(h).) It is also unlawful to retaliate against a person for requesting an accommodation for religious practice or disability, regardless of whether the request was granted. (Gov. Code, § 12940(*l*)(4) [religious practice], (m)(2) [disability].)

Government Code section 12945.2 provides protections under CFRA. But Plaintiff has not provided legal authority, or quoted language from the relevant statutes, that shows requesting and taking CFRA leave constitutes a protected activity under FEHA. Nor has Plaintiff alleged facts showing that he was unlawfully denied CFRA leave (or another unlawful action by Defendants) and opposed that conduct by making a complaint.

The Court finds that Plaintiff has not yet alleged a claim for retaliation under FEHA. The demurrer to cause of action four is sustained with leave to amend.

Unpaid Wages, Waiting Time Penalties, Inaccurate Wage Statements (C/A 6 to 8)

Defendants demur to the wage claims as alleged against Turman. Defendants argue that Turman was Plaintiff's supervisor and there are no allegations that he was involved in the unpaid or inaccurate wage statements alleged here.

Labor Code section 558.1 makes certain person acting on behalf of an employer liable for wage and hour violations under the Labor Code, including sections 203, 226, 226.7, 1193.6, 1194, or

2802. (Lab Code § 558.1(a).) "[T]he term 'other person acting on behalf of an employer' is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term 'managing agent' has the same meaning as in subdivision (b) of Section 3294 of the Civil Code." (Lab Code § 558.1(b).)

To be held liable under section 558.1 a person "must either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer, including, for example, over those responsible for the alleged wage and hour violations, such that the 'owner' may be deemed to have contributed to, and thus for purposes of this statute, 'cause[d]' a violation." (*Usher v. White* (2021) 64 Cal.App.5th 883, 896-897.) "[T]o be held personally liable he or she must have had some oversight of the company's operations or some influence on corporate policy that resulted in Labor Code violations." (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.)

Defendants argue that Turman is alleged to have been Plaintiff's manager and determined "Plaintiff's schedule, approved his payroll, and made decisions regarding Plaintiff's working conditions." (FAC ¶4.) Defendant points out that there are no allegations regarding whether Turman was involved in unpaid or inaccurate wages.

Plaintiff argues that in addition to the allegation that Turman determined Plaintiff's schedule and approved payroll, Plaintiff alleged that UPS gave Turman broad authority. (FAC ¶4.)

Here, the unpaid wage claim alleges that UPS failed to pay Plaintiff three peak days earned for working holidays in 2024, three weeks of accrued vacation pay, and five discretionary days upon termination. (FAC ¶70.) Further, Plaintiff alleges that these violations gave rise to waiting-time penalties and these amounts were omitted from Plaintiff's wage statements.

The Court finds that Plaintiff has not sufficiently alleged a claim against Turman for the Labor Code violations. Plaintiff has not alleged facts showing that Turman was actually involved in any of the alleged violations. The demurrer to these claims is sustained with leave to amend.

<u>Breach of Contract (C/A 11)</u>

Defendant argues that there is no breach of contract claim here because the employment was at will, and the alleged Leave Guidelines attached to the complaint do not defeat at-will employment. (*Tomlinson v. Qualcomm* (2002) 97 Cal.App.4th 934, 937.)

Under "Labor Code section 2922, if the parties reach no express or implied agreement to the contrary, the relationship is terminable at any time without cause. But when the parties have enforceable expectations concerning either the term of employment or the grounds or manner of termination, Labor Code section 2922 does not diminish the force of such contractual or legal obligations." (*Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654, 680.) When determining if there is a contractual right, courts look to the express terms of an employment agreement, but also look at " ' "the personnel policies or practices of the employer, the employee's longevity of service, actions or communications by the employer reflecting assurances of continued employment, and the practices of the industry in which the employee is engaged.' [Citations.]" (*Ibid*.) "The principle that implied employment contract terms may arise from the employer's official and unofficial policies and practices is one that long predates *Foley*, and has not been confined to the area of wrongful termination." (*Scott v. Pacific Gas & Electric Co.* (1995) 11 Cal.4th 454, 464.)

Here, Plaintiff alleges that UPS's Employee Handbook and applicable policies provided for job-protected paternity leave consistent with federal and state law. (FAC ¶100.) "By continuing to employ PLAINTIFF under these policies and acknowledging his leave request, UPS entered into a binding agreement to provide him with protected leave and reinstatement to a comparable position upon his return." (FAC¶ 101.) Plaintiff alleges that UPS breached this agreement when it failed to reinstate Plaintiff to a business supervisor role after his leave and instead terminated his employment. (FAC ¶102.)

In *Tomlinson*, an employee went on approved FMLA leave and was told that you will be returned to your position or an equivalent job if you return to work before the expiration of the leave. (*Tomlinson, supra,* 97 Cal.App.4th at 938-939.) Plaintiff's employment was then terminated as part of a company wide layoff. Plaintiff argued that the employer's family leave policy created an implied-in-fact agreement of continued employment. (*Id*. at 944.) However, Plaintiff signed an agreement confirming that her employment was at-will. (*Id*. at 944-45.) The court held that the expressed at-will language defeated the implied in fact argument. (*Id*. at 944-946.)

Tomlinson is distinguishable as here Plaintiff has not alleged an express at-will language that conflicts with the language in the employee handbook. Further, *Tomlinson* was decided at trial when the trial court granted a nonsuit motion. Here, the Court is reviewing only Plaintiff's allegations.

The Court finds that Plaintiff has alleged an implied-in-fact contract that Plaintiff would not be terminated while on CFRA leave. The demurrer to cause of action eleven is overruled.

<u>Breach of the Covenant of Good Faith and Fair Dealing (C/A 12)</u>

Defendant argues that the covenant of good faith and fair dealing claim fails for the reasons stated in the breach of contract claim and because it is superfluous of that claim.

Where a claim for breach of the implied covenant of good faith and fair dealing does "not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395.)

Plaintiff argues that the covenant of good faith and fair dealing claim includes allegations that Defendants acted arbitrarily and steered him towards inappropriate roles that frustrated the benefits agreement beyond the breach itself.

The Court finds that as alleged the covenant of good faith and fair dealing claim is superfluous of the breach of contract claim. The claim that Defendants breached their agreement with Plaintiff arbitrarily or in bad faith does not add anything to this claim, which is a contract claim. As the California Supreme Court has explained "To the extent [plaintiff's] implied covenant cause of action seeks to impose limits on [defendant's] termination rights *beyond* those to which the parties actually agreed, the claim is invalid. To the extent the implied covenant claim seeks simply to invoke terms to which the parties *did* agree, it is superfluous. [Plaintiff's] remedy, if any, for [defendant's] alleged violation of its personnel policies depends on proof that they were contract terms to which the parties actually agreed. The trial court thus properly dismissed the implied covenant cause of action." (*Guz, supra,* 24 Cal.4th 317, 352-353.)

The demurrer to cause of action twelve is sustained with leave to amend.

Uncertainty

Defendants also demurred on uncertainty. Defendants did not address uncertainty in their moving papers. Further, the complaint is not so uncertain that Defendants cannot respond to it. The demurrer for uncertainty is overruled.

12. 9:00 AM CASE NUMBER: C25-02877
CASE NAME: STEPHEN JUROVICH VS. BILL BRANDT FORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: BILL BRANDT FORD, INC.
****TENTATIVE RULING:****

Before the Court is a petition/motion to compel arbitration, dismiss putative class claims, and stay proceedings filed by defendant Bill Brandt Ford, Inc.. For the reasons set forth, the motion is **granted** on the terms set forth below.

Background

Plaintiff Stephen Jurovich was employed by defendant Bill Brandt Ford, Inc. from February or March 2022 through August 2025. (Brandt Decl. ¶ 2; Jurovich Decl. ¶ 2.) Plaintiff filed a putative class action complaint against Brand Ford on behalf of himself and others similarly situated on October 3, 2025. He alleges six causes of action for various wage and hour violations under the Labor Code and the applicable Industrial Wage Orders and a seventh cause of action for violation of the Unfair Competition Law, Business and Professions Code section 17200, *et seq.* ("UCL"). Defendant seeks to compel Plaintiff to arbitrate his claims pursuant to the Mutual Arbitration Agreement executed by Jurovich dated April 13, 2023 (the "Arbitration Agreement"). (Petn. Exh. A.)

Procedure and Burden of Proof on Motion to Compel Arbitration

The Arbitration Agreement states that it "is governed by the Federal Arbitration Act, 9 U.S.C. § 1, *et seq.*" (the "FAA"). Defendant has also presented evidence that its business as an automotive dealership with repair facilities is involved in interstate commerce, such that the FAA governs on that ground as well. (Brandt Decl. ¶ 4; *Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 55-57 [the term "involving commerce" in the FAA is "the functional equivalent of the more familiar term 'affecting commerce'--words of art that ordinarily signal the broadest permissible exercise of Congress' Commerce Clause power. [Citation omitted.]," holding the FAA applied to debt restructuring agreements even though the individual transactions in that case may not have actually been in interstate commerce]; *Allied-Bruce Terminix Cos., Inc. v. Dobson* (1995) 513 U.S. 265, 273-274 [broadly construing "involving interstate commerce" to mean "affecting" interstate commerce, and holding the FAA governed an arbitration agreement between a homeowner and local pest control company where the treatment products and repair materials were shipped from out of state].)

Whether the Arbitration Agreement is governed by the FAA or the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA"), the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as unconscionability, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.) (*See also McGill v. Citibank, N.A.* (2017) 2 Cal.5th 945, 962 [savings clause of section 2 of the FAA shows intent of FAA is " 'to make arbitration agreements as enforceable as other contracts, but not more so.' [Citation omitted.] Thus, arbitration agreements, '[l]ike other contracts,' 'may be invalidated by ‘generally applicable contract defenses, such as fraud, duress, or unconscionability.' [Citation omitted.'"].)

The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra,* 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra,* 15 Cal.4th at 972.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*Rosenthal, supra,* 14 Cal.4th at 413.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

Existence of An Agreement to Arbitrate

There is no dispute regarding the existence of the Arbitration Agreement. Plaintiff admits he signed the Arbitration Agreement, consistent with the Brandt Declaration attesting that he witnessed Plaintiff sign. (Jurovich Decl. ¶ 4; Brandt Decl. ¶ 6.) This evidence shifts the burden to Plaintiff to prove grounds for not enforcing the Arbitration Agreement. Plaintiff contends the Arbitration Agreement is unenforceable under Civil Code section 1670.5 because it is procedurally and substantively unconscionable.

Unconscionability Defense

The burden of proof of unconscionability is on Plaintiff as the party resisting arbitration. (*Rosenthal, supra,* 14 Cal.4th at 413; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Both procedural and substantive unconscionability must be proven to render a contract unenforceable, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.) (*See also OTO, supra,* 8 Cal.5th at 125.) "Unconscionability is judged 'at the time [the contract is] made.' [Citations omitted.]" (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 322, fn. 2.) (*See also Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 ["an unconscionability assessment focuses on circumstances known at the time the agreement was made. [Citations omitted.]"]; Civ. Code § 1670.5(a).)

1. **Procedural Unconscionability**

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra,* 8 Cal.5th at 126.) The analysis begins with a determination of whether the agreement is a contract of adhesion, typically a non-negotiable form agreement drafted by the party seeking to compel arbitration. (*OTO, supra,* 8 Cal.5th at 126.) Surprise for purposes of procedural unconscionability arises where an allegedly unconscionable term "is hidden within a prolix printed form." (*Pinnacle, supra,* 55 Cal.4th at 247.)

a. Contract of Adhesion

There is no reasonable dispute that the Arbitration Agreement is a contract of adhesion, a standard form agreement drafted by Defendant as the employer with superior bargaining power and without the employee having a meaningful opportunity to negotiate its terms or refuse to sign it. (*Armendariz, supra,* 24 Cal.4th at 113 [defining contract of adhesion].) Indeed, Defendant confirms that all employees are required to sign an arbitration agreement as a condition of the commencement or continuation of their employment. (Brandt Decl. ¶¶ 5, 6.) The evidence supports that the contract was presented on a take-it-or-leave-it basis. (Brandt Decl. ¶ 6; Jurovich Decl. ¶ 4.) The lack of choice in whether to sign an employment arbitration agreement indicates some degree of oppression and procedural unconscionability. (*Armendariz, supra,* 24 Cal.4th at 115.) (*See also Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492-493. 494 [contracts of adhesion "remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid," and "although adhesion alone generally indicates only a low degree of procedural unconscionability, the potential for overreaching in the employment context warrants close scrutiny of the contract's terms." (Emphasis added.)].)

b. Additional Evidence of Oppression

In *OTO, supra*, the Court lists circumstances relevant to establishing oppression, including " '(1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney.' [Citation omitted.]" (*OTO, supra,* 8 Cal.5th at 126-127.) The Court found a high degree of procedural unconscionability in that case based on both oppression and surprise, where the document was presented to a technician by a "porter," characterized as a low-level employee unlikely to be able to answer questions regarding the document, the text of the document was in extremely small font which was " 'visually impenetrable' " and almost illegible, and the substance of the text was "complex, filled with statutory references and legal jargon," listing statutes not just by their name but by their code citations, including six different sections of the Civil Code and Code of Civil Procedure. (*Id.* at 127-128.)

Plaintiff argues oppression because he did not have a fair opportunity to read and understand the agreement before signing it, to ask questions, or to consult with others regarding its terms. He describes the Office Manager placing "documents" before him for sign with the expectation they would be signed immediately, though he does not identify any documents he was given other than the Arbitration Agreement. (Jurovich Decl. ¶ 4.) Plaintiff declares no one told him he could take as much time as he needed to read the documents or that he could consult with an attorney before signing, nor did anyone explain what an arbitration agreement is. (Jurovich Decl. ¶¶ 4, 5.) He also states that, like the employee in *OTO*, he was not given a copy of the Arbitration Agreement he signed. (*OTO, supra,* 8 Cal.5th at 128; Jurovich Decl. ¶ 7.)

The circumstances Plaintiff describes raise the low level of procedural unconscionability from the mere fact that the agreement is a contract of adhesion, but the circumstances are not comparable to those in *OTO.* The Office Manager who gave him the Arbitration Agreement apparently waited for him to sign, which supports Plaintiff being under some pressure to execute the document. (Jurovich ¶ 4.) The Arbitration Agreement is five pages single-spaced, with a long list of claims covered in Section 1. Though the Arbitration Agreement does not include extensive citations to code sections or extensive use of legal jargon described in *OTO*, the text is fairly dense. Unlike *OTO*, he was given the document by the Office Manager, not a low level employee who was not able to answer questions about the agreement if Plaintiff had asked. The physical characteristics of the document do not compare to those in *OTO*. The title of the document is in all capital letters and bold font, with the headings for the sections summarizing their content in bold font and underscored.

While Plaintiff states no one explained the document to him or told him he could take time to read it or consult an attorney before signing, Plaintiff also does not indicate that he was prevented from reading it, or that he in fact failed to read the agreement before signing. Even if he did not read the document, his failure to read it does not mean he may not be bound. (*Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 249 [stating "But 'simply because a provision within a contract of adhesion is not read or understood by the nondrafting party does not justify a refusal to enforce it. The unbargained-for term may only be denied enforcement if it is also substantively unreasonable.' [Citation omitted.]"].) Plaintiff has shown at most a moderate degree of procedural unconscionability.

2. <u>Substantive Unconscionability</u>

In making the unconscionability determination, "The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911-12.) In general, the arbitration agreement must be so overly harsh, unduly oppressive, and unreasonably favorable to the more powerful party that they undermine the neutrality of the agreement to arbitrate in order to be found substantively unconscionable. (*Sanchez, supra,* 61 Cal.4th at 910-911, 913; *Armendariz, supra,* 24 Cal.4th at 117.) Something more than an employee making a bad bargain is required. (*Pinnacle, supra,* 55 Cal.4th at 246 ["A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be 'so one-sided as to 'shock the conscience.' "].) "Substantive unconscionability looks beyond the circumstances of contract formation and considers 'the fairness of an agreement's actual terms' [citation omitted], focusing on whether the contract will create unfair or one-sided results [citation omitted.]. Substantively unconscionable contractual clauses 'reallocate risks in an objectively unreasonable or unexpected manner.' [Citations omitted.]" (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 493.)

a. Scope of Covered Claims

Plaintiff argues that the Arbitration Agreement has the same scope, lack of mutuality, and infinite duration as the arbitration agreement that was held to be substantively unconscionable in *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. Plaintiff misreads the language of Section 1 of the Arbitration Agreement. The first paragraph of Section 1 expressly states the Agreement "applies to any dispute arising out of or related to Employee's . . . application or selection for employment, employment, and/or termination of employment with Bill Brandt Ford, Inc., or one of its affiliates, subsidiaries, or parent companies (the 'Company")." (Petn. Exh. A [Arb. Agmt. Section 1].) The quotation of the language of the second paragraph of Section 1 in the opposition omits the text at the end of Section 1 which is similarly limited. (Opp. p. 6, ll. 1-4.) The second paragraph of Section 1 states that the Arbitration Agreement "is intended to apply to the resolution of disputes that otherwise would be resolved in a court of law or before a forum other than arbitration, including without limitation, disputes arising out of or relating to the application for employment, background checks, privacy, employment relationship, or the termination of that relationship (including post-employment defamation or retaliation) . . . and all other federal or state legal claims (including without limitation torts) arising out of or relating to your application, selection, employment, or the termination of employment." (Petn. Exh. A [Arb. Agmt. Section 1, emphasis added].)

The complete text of Section 1 specifically ties the claims subject to arbitration to Plaintiff's employment, unlike the unbounded claims covered by the arbitration agreement in *Cook.* (*Compare to Cook, supra,* 102 Cal.App.5th at 321-322.) Because the Arbitration Agreement explicitly covers only claims tethered to Plaintiff's employment, the scope is like that in the agreement in *Ayala-Ventura v. Superior Court* (2026) 119 Cal.App.5th 241 which the Court found was not overly broad and was enforceable. (*Id.* at 255-256.)

b. Unlimited Duration

Plaintiff argues the Arbitration Agreement has an infinite duration because it survives the termination of Plaintiff's employment, like the arbitration agreement in *Cook*. (*Cook, supra,* 102 Cal.App.5th at 317, 326.) The agreement in *Cook* is distinguishable from the Arbitration Agreement here. First, the context of the agreement in *Cook* is that it applied to any claims arising in any context that the employee might have against the University of Southern California or any trustees or others associated with the university, a large institution with many facilities, including a medical center, such that there was an expansive range of potential incidents that might be subject to the agreement over a virtually unlimited time frame, as noted by the Court in *Ayala-Ventura*. (*Cook, supra,* 102 Cal.App.5th at 318-319; *Ayala-Ventura, supra,* 119 Cal.App.5th at 257 ["The agreement in *Cook* was unconscionable in part because of the multifarious ways in which a claim against USC 'completely unrelated to [Cook's] employment' could arise. [Citation omitted.] As an example, the trial court observed that if Cook were to undergo a botched surgery at USC's hospital in 15 years, her claims would still be subject to arbitration. [Citation omitted.]"].) Second, the agreement in *Cook* could only be terminated or revoked in a written agreement signed by both parties, which the Court held under applicable law, coupled with the unbounded claims, gave the agreement an unlimited duration. (*Id.*) No such termination provision is in the Arbitration Agreement here.

Plaintiff also points to other the language in the "survival" provision: "This Agreement will survive the termination of your employment and the expiration of any benefit, <u>and it will continue to apply upon your transfer to any parent, subsidiary or affiliate of the Company or re-employment by the Company if your employment is ended but later renewed</u>." (Petn. Exh. A [Arb. Agmt. Section 11, emphasis added.) He argues this provision unreasonably and unfairly extends the application of the Arbitration Agreement in terms of the scope of his claims if his employment were to be transferred to an entity related to Brandt Ford, but the provision in that respect reiterates what Plaintiff agreed to in Section 1 of the agreement by the definition of the Company. Plaintiff also argues it expands the duration of the Arbitration Agreement because it extends to any future "re-employment" with the Company. The effect of the provision, however, is to confirm that the parties agree that if Plaintiff is employed by the Company, as defined in the agreement, and if Plaintiff has claims that arise out of or relate to his employment with the Company, either during his current employment or later re-employment, they are to be decided in arbitration. Plaintiff has not cited any authority which has held such a provision to be invalid or unconscionable under California law.

c. <u>Lack of Mutuality of Arbitration Obligation</u>

Relying on *Cook,* Plaintiff also argues that the Arbitration Agreement is unfairly one-sided and non-mutual because it compels Plaintiff to arbitrate claims he may have against not only Brandt Ford, but also that entity's "affiliates, subsidiaries, or parent companies," defined as part of the "Company," and the Company's "officers, directors, principals, shareholders, members, owners, employees, or agents," "benefit plans or the plan's sponsors, fiduciaries, administrators, affiliates, or agents" and their successors and assigns. (Petn. Exh. A [Arb. Agmt. Section 1.) The Arbitration Agreement then expressly allows those individuals and entities to enforce the Agreement, making them intended, third party beneficiaries. (Petn. Exh. A [Arb. Agmt. Section 1.)

Plaintiff argues that the effect of these provisions is to bind Plaintiff to arbitrate his claims against these individuals and entities, without a corresponding arbitration obligation by the individuals and entities, other than Brandt Ford, to arbitrate their claims against him. Based on *Cook*, Plaintiff contends he would be unable to compel those nonsignatory individuals and entities to arbitrate any claims they might make against him, as to do so, he would have to show they accepted a benefit under the Arbitration Agreement, a showing the employee would be unlikely to be able to make. (*Cook, supra,* 102 Cal.App.5th at 328.)

In its reply, Defendant argues that there is a sufficient "modicum" of mutuality as the Arbitration Agreement, like the Arbitration Agreement in *Ayala-Ventura*, requires the employer to arbitrate all of its claims against the Plaintiff. As a result, it is not the case that the stronger party has imposed arbitration on the weaker party without the stronger party being bound to arbitrate its claims against the employee. (*Ayala-Ventura, supra*, 119 Cal.App.5th at 259 ["We are not convinced the Agreement's purported failure to require CCS's employees and agents to arbitrate their claims against Ayala-Ventura results in a lack of mutuality between the contracting parties. The Agreement is between CCS and Ayala-Ventura; it is not between her and CCS's employees and agents. A lack of mutuality generally consists of the stronger party imposing terms on the weaker party without accepting those terms itself. [Citation omitted.] But this is not a contract where only the weaker party's claims are subject to arbitration. The Agreement 'applies equally to employee and employer initiated claims, carrying the "modicum of bilaterality" required by law.' [Citation omitted.]"].) In light of this conclusion in *Ayala-Ventura* by which the Court is bound, the Court concludes the Arbitration Agreement is not unconscionable for a lack of mutuality because of the provision compelling arbitration of Plaintiff's employment-related claims against employees and agents of the Company.

d. Impermissible Cost Shifting with Rule 68 Offer of Compromise

Plaintiff contends the provision of Section 3 of the Arbitration Agreement allowing a party to make an offer of judgment "in a manner consistent with, and within the time limitations, consequences, and effects provided in Rule 68 of the Federal Rules of Civil Procedure" is also unconscionable. Rule 68(d) of the Federal Rules of Civil Procedure states that "[i]f the judgment that the offeree finally obtains is not more favorable than the unaccepted offer, the offeree must pay the costs incurred after the offer was made."

Rule 68 is the federal analog to Code of Civil Procedure section 998. Plaintiff contends that the fee-shifting provisions of Code of Civil Procedure section 998 have been overridden by the Labor Code provisions which preclude an award of costs to an employer for certain wage and hour claims brought by an employee. (*Chavez v. California Collision, LLC* (2024) 107 Cal.App.5th 298, 301,306-311 [finding that the general provisions of section 998 are overridden by Labor Code sections 1194 and 218.5, stating "where the one-way cost-shifting provisions of Labor Code sections 1194 and 218.5 apply, they serve to override the more general cost shifting [provisions of [Code of Civil Procedure] sections 998 and 1032."].) Plaintiff argues that the Arbitration Agreement's provision applying the consequences of a Rule 68 offer of judgment would violate California public policy and the holding in *Chavez* because Rule 68 may preclude a plaintiff employee from recovering costs even though the Labor Code allows for the employee's cost recovery and because it may impose costs on the employee in violation of the Labor Code.

Neither party has cited any case in which the interplay of Rule 68 with the California Labor Code has been applied in a wage and hour action under the California Labor Code statutes. Plaintiff cites one Ninth Circuit decision under the Federal Labor Standards Act ("FLSA") in which the Ninth Circuit, based on a prior United States Supreme Court decision construing Rule 68 in an action for civil rights violations under 28 U.S.C. section 1983, held that the cost-shifting provisions of the FSLA are overridden by the provisions of Rule 68 and that as to attorneys' fees, "in an FLSA case when a Rule 68 offer of judgment has been rejected, and judgment is obtained for less than the settlement offer, these circumstances must be considered by the district court in determining what fee is reasonable." (*Hawath v. Nevada* (9th Cir. 1995) 56 F.3d 1048, 1052.)

Plaintiff also cites California decisions in which provisions of an arbitration agreement that violate the Labor Code fee-shifting framework in employee actions have been held unconscionable and invalidated. (*See, e.g., Mills v. Facility Solutions Group, Inc.* (2022) 84 Cal.App.5th 1035, 1056 ["Section 6.b [of the arbitration agreement] is therefore substantively unconscionable because it forces Mills to pay FSG's attorney fees and costs in situations where Mills's claims are found to be 'factually groundless' but not brought in bad faith, contrary to section 218.5, subdivision (a), which would otherwise apply in the trial court, and contrary to the prevailing employee provisions in sections 1194 and 2802."]; *Ajamian v. CantorCO2e, L.P.* (2012) 203 Cal.App.4th 771, 800 [holding "prevailing party" attorney fee award provision in employment agreement enforced in an arbitration agreement unconscionable was violative of Labor Code].) Defendant does not address these decisions and their import for the validity of the Rule 68 provision in the Arbitration Agreement in its reply.

Defendant argues that the Rule 68 provision in the Arbitration Agreement would be overridden by the JAMS employment arbitration rules, specifically Ryle 24(f) which states that "The Award of the Arbitrator may allocate Arbitration fees and Arbitrator compensation and expenses, <u>unless such an allocation is expressly prohibited by the Parties' Agreement or by applicable law</u>." (Reply p. 9, ll. 1-6 [emphasis added].) The "Parties' Agreement" in this case, however, makes an offer of judgment subject to the consequences of Rule 68, so it is not clear that the Arbitration Agreement would not override the JAMS rule cited by Defendant. Indeed, Section 3 of the Arbitration Agreement states that "if there is a conflict between the JAMS Rules and this Agreement, <u>this Agreement shall govern</u>." (Petn. Exh. A [Arb. Agmt. Section 3, emphasis added].) The Court in *Mills* rejected a similar argument. The defendant cited a provision of the arbitration agreement in that case requiring the arbitrator to apply the substantive law and remedies of the jurisdiction where the claim arose, arguing that the provision made the applicable Labor Code fee-shifting controlling, but the Court rejected the argument, still finding that the fee-shifting provision in that agreement was unconscionable. (*Mills, supra,* 84 Cal.App.5th at 1057.)

The express incorporation of the "consequences" of a Rule 68 offer of judgment into the provisions governing the arbitration and the potential that an arbitrator could award costs and attorneys' fees against an employee plaintiff in a manner inconsistent with the limitations under the Labor Code and the *Chavez* decision makes the Rule 68 provision substantively unconscionable.

e. <u>Limitation on Plaintiff's Ability to Obtain A Public Injunction</u>

McGill held that an individual could obtain a public injunction if they have suffered an injury in fact and bring a claim under the UCL or False Advertising Law, Business & Professions Code section 17500 *et seq.*, individually. (*McGill, supra,* 2 Cal.5th at 958-959.) The Court explained the difference between a private injunctive relief, "i.e., relief that primarily 'resolve[s] a private dispute' between the parties [citation omitted] and 'rectif[ies] individual wrongs' [citation omitted], and that benefits the public, if at all, only incidentally" and public injunctive relief, "i.e., relief that 'by and large' benefits the general public [citation omitted] and that benefits the plaintiff, 'if at all,' only 'incidental[ly]' and/or as 'a member of the general public' [citation omitted]." (*Id.* at 955.) The Court explained that "public injunctive relief under the UCL, the CLRA, and the false advertising law is relief that has 'the primary purpose and effect of' prohibiting unlawful acts that threaten future injury to the general public. [Citation omitted.] Relief that has the primary purpose or effect of redressing or preventing injury to an individual plaintiff—<u>or to a group of individuals similarly situated to the plaintiff</u>—does not constitute public injunctive relief." (*Id.* at 955 [emphasis added].)

The Court held that a provision in a predispute arbitration agreement that waives the right to seek a public injunction "in any forum . . . is contrary to California public policy and is thus unenforceable under California law." (*Id.*) The Court also held this rule is not preempted by the FAA. (*Id.*)

It is not clear that Plaintiff is seeking public injunctive relief in his UCL claim, rather than a private injunction to redress or prevent injury to Plaintiff and "a group of individuals similarly situated" to Plaintiff. (Compl. ¶¶ 77, 78, 83 ["Plaintiff and Class Members are entitled to injunctive relief"; Prayer ¶ 9]; McGill, supra, 2 Cal.5th at 955; *Clifford v. Quest Software Inc.* (2019) 38 Cal.App.5th 745, 753.) The Court, however, does not determine the validity or enforceability of an arbitration agreement based on subsequent events arising after its execution, such as the specific causes of action the plaintiff is pursuing. Whether a contract is unconscionable is determined "at the time [the contract] was made." (Civ. Code § 1670.5; *Ramirez, supra,* 16 Cal.5th at 555.)

Plaintiff argues that the Arbitration Agreement contains a waiver of the right to public injunctive relief, because it both precludes Plaintiff from bringing an action as a class or collective action and limits the remedies the arbitrator may grant "to those that would be available to a party in his or her individual capacity." (Petn. Exh. A [Arb. Agmt. Section 5 ["The Arbitrator may award any remedy to which a party is entitled under applicable law, and remedies will be limited to those that would be available to a party in his or her individual capacity for claims presented to the Arbitrator, and no remedies that otherwise would be available to an individual under applicable law will be forfeited."].)

In its reply, Defendant argues that (1) the Arbitration Agreement incorporates the procedures of the CAA, which include Code of Civil Procedure section 1281.8 that allows a party to seek provisional remedies, including preliminary injunctive relief, in Court. Defendant also cites a provision of the JAMS Rules, Rule 24(e), that also allow the arbitrator to "grant whatever interim measures are deemed necessary" and allows a party to seek recourse to the Court for "interim or provisional relief" without being deemed to have waived the right to arbitrate. (Reply p. 9, ll. 20-27.) Section 2 of the Arbitration Agreement only reiterates that a party may seek "temporary or preliminary injunctive relief" in court, but that "[a]ll determinations of final relief, however, will be decided in arbitration." (Petn. Exh. A [Arb. Agmt. Section 2.)

There does not appear to be any prohibition on the arbitrator granting final injunctive relief as a remedy in arbitration (*see O'Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 278), but the Arbitration Agreement limits the arbitrator to granting Plaintiff remedies available only in his individual capacity. A public injunction does not appear to be such a remedy, nor does Defendant argue that Plaintiff can obtain public injunctive relief in the arbitration or that the Arbitration Agreement allows Plaintiff to pursue the remedy of a public injunction in Court, since he is obligated to arbitrate all of his claims individually, with limited exceptions not applicable to claims under the UCL or FAL.

Plaintiff cites *Vaughn v. Tesla, Inc.* (2023) 87 Cal.App.5th 208. The agreement in *Vaughn* provided that "[a]ny claim, dispute, or cause of action must be brought in a party's individual capacity, and not as a plaintiff or class member in any purported class or representative proceeding" and that "[t]he arbitrator shall not have the authority to . . . award relief to a group or class of employees in one arbitration proceeding." (*Id.* at 228.) The Court in *Vaughn* found the defendant had forfeited the argument that injunctive relief to a plaintiff with standing under the UCL is not public injunctive relief, as it is not a request for relief on behalf of others. (*Id.* at 228.) Further, the defendant at oral argument on appeal did not dispute that the language of the remedies provision in *Vaughn* precluded public injunctive relief, thus bringing the agreement in that case into the *McGill* holding. (*Id.* ["[B]ecause the Arbitration Provision provides for resolution of all covered disputes in arbitration, but prohibits an arbitrator from granting nonindividual relief, the provision does waive Plaintiffs' right to seek a public injunction 'in any forum'" in violation of applicable law.].)

Defendant's reply does not address whether the Arbitration Agreement's limitations on the pursuit of class or collective claims (Section 5) combined with the limitation on remedies to those obtainable by Plaintiff in his "individual capacity" (Section 3) preclude Plaintiff from obtaining public injunctive relief in <u>any</u> forum as a final, permanent injunction either in arbitration or in Court in violation of *McGill*. Defendant does not argue that the Arbitration Agreement <u>allows</u> Plaintiff to obtain public injunctive relief on his UCL claim as a final remedy because such a remedy is available to plaintiff "in his individual capacity." (Petn. Exh. A [Arb. Agmt. Section 3].) Defendant's reply does not address the holdings in *McGill* or *Vaughn* and their application to the agreement in this case.

Though the language of the agreements regarding individual relief in the *Vaughn* and *Jack* cases are not the same as the language in the Arbitration Agreement, it is similar. Defendant seems to implicitly concede Plaintiff's interpretation of the agreement and the application of *McGill* and *Vaughn*. This aspect of the agreement is therefore also unconscionable.

3. <u>Unconscionability Conclusion</u>

Plaintiff demonstrated a moderate degree of procedural unconscionability and that two provisions of the Arbitration Agreement are substantively unconscionable under applicable law based on the record before the Court. The Court therefore considers whether the substantively unconscionable provisions can be severed and the severed version of the agreement enforced.

<u>Severability Analysis</u>

The Arbitration Agreement has a severability provision which states: "In the event any portion of this Agreement is deemed unenforceable, the remainder of this Agreement will be enforceable to the maximum extent permitted by law." (Petn. Exh. A [Arb. Agmt. Section 11].) The California Supreme Court has provided substantial guidance for a trial court's decision whether to sever unconscionable or unenforceable provisions of an arbitration agreement.

The Court in *Ramirez* clarified that (a) "no bright-line rule *requires* a court to refuse enforcement if a contract has more than one unconscionable term," (b) a court is not *required* to sever or restrict an unconscionable term if an agreement has only a single such term, (c) "the appropriate inquiry is qualitative" and considers whether the court can cure the unconscionability by "severance or restriction" or whether augmentation or reformation is required, and (d) "[e]ven if a contract *can* be cured," the court should consider "whether the unconscionability *should* be cured through severance or restriction because the interests of justice would be furthered by such actions. [Citations omitted.]" (*Ramirez, supra,* 16 Cal.5th. at 516 [italics in original].) The Court considers whether with respect to the unconscionable provisions, the "illegality is collateral to the contract's main purpose." (*Id.* at 517.)

The Court also considers "the deterrent effect of each option," and the Court should not enforce the arbitration agreement if severance and enforcement "would function to condone an illegal scheme and whether defects in the agreement indicate the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id*. at 516-517.) "Severance may be properly denied when the agreement contains more than one unconscionable provision, and ' "there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement." [Citation.]' [Citations omitted.]" (*Cook, supra,* 102 Cal.App.5th at 329.)

The Court has found two provisions of the Arbitration Agreement to be unconscionable, specifically the provision regarding offers of judgment under Rule 68 of the Federal Rules of Civil Procedure and the provision limiting the relief available to remedies in a party's "individual capacity." The Court finds severance of the unconscionable terms is appropriate in this case because the unconscionability does not permeate the Arbitration Agreement; the two unconscionable provisions do not go to the heart of the agreement to arbitrate but relate to what could be characterized as collateral issues. Severance of the unconscionable terms can also be effectuated to extirpate the unconscionable aspects of the agreement without reforming the language of the agreement. (*Ramirez, supra,* 16 Cal.5th at 516-517.) The Court will enforce the Arbitration Agreement subject to severance of the two unconscionable provisions and grant the motion to compel the claims to arbitration as set forth below.

Class Action Waiver

The petition/motion asks the Court to dismiss Plaintiff's class claims. The arbitration agreement includes a waiver of the parties' right to bring class claims. (Petn. Exh. A [Arb. Agmt. Section 5].) Plaintiff does not contest the existence of the waiver or its enforceability. (*AT&T Mobility LLC v. Concepcion* (2010) 563 U.S. 333, 352 [FAA preempts California law on enforceability of waiver of class claims in arbitration agreement]; *Stolt-Nielsen S.A. v. AnimalFeeds International Corp.* (2010) 559 U.S. 662, 687 [right to arbitration of class claims cannot be inferred from arbitration agreement because class action arbitration changes the bilateral nature of arbitration]; *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 378, 388-389 [based on *Concepcion*, FAA preempts and makes enforceable a waiver of class claims in an employment arbitration agreement, but not a waiver of PAGA claims].)

Request to Stay the Action

Moving Parties ask the Court to stay the action pending completion of the arbitration pursuant to Code of Civil Procedure section 1281.4. " 'The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.' [Citation omitted.] 'In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.' [Citation omitted.]" (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1152.) The Court finds staying the action pending the arbitration is appropriate.

Conclusion and Final Ruling

The Court will enforce the Arbitration Agreement subject to severance of the unconscionable provisions of the Arbitration Agreement. The Court severs and strikes (1) the clause in the first sentence of the last paragraph of Section 3 of the Arbitration Agreement (beginning with "and remedies will be limited" until "claims presented to the Arbitrator"), and (2) the last sentence of Section 3 of the Arbitration Agreement (beginning with "A party may make an offer" and ending with "Rule 68 of the Federal Rules of Civil Procedure"). With those provisions stricken, the Court will grant the petition/motion to compel Plaintiff's claims to arbitration on an individual basis. The putative class claims will be dismissed, and the action shall be stayed pending completion of the arbitration, except that the Court will schedule periodic case management conferences to determine the status of the arbitration from time to time. Given the Court's ruling, the case management conference presently scheduled for 8:30 a.m. on August 5, 2026, is hereby vacated and will be reset to January 13, 2027.

13. 9:00 AM CASE NUMBER: C26-00997
CASE NAME: STERLING SMITH VS. THOMAS BROS EQUIPMENT RENTAL
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT AGAINST NETWORK ADJUSTERS, INC.**
FILED BY: NETWORK ADJUSTERS INC.
TENTATIVE RULING:

Defendant Network Adjusters, Inc.’s motion to set aside default and request for sanctions is **granted in part and denied in part,** as set forth below.

Background

This action arises from a vehicular collision and Plaintiff's subsequent dispute over the handling of the related insurance claim. Plaintiff Sterling B. Smith, appearing in propria persona, filed the Complaint on March 24, 2026, against Thomas Bros Equipment Rental, Accelerant Specialty Insurance, and Network Adjusters, Inc., alleging breach of contract and negligence. On May 4, 2026, Plaintiff filed a request for entry of default against Network Adjusters, which was entered that same day and then set aside as prematurely entered. Plaintiff filed a second request for entry of default against Network Adjusters on May 7, 2026, which the clerk entered.

The proof of service on file states that the process server, F. Conley of the Sheriff's Civil Bureau, personally served the party identified in item 3(a) as Network Adjusters Inc. by delivering copies of the complaint and other service documents on April 2, 2026, at 12:41 p.m. In item 3(b), the proof of service identifies the person actually served, not as the party itself, but as a person served "on behalf of an entity or as an authorized agent," and names that person as "Rebecca Vang /Authorized Agent." The address where the party was served is listed as Lawyers Incorporating Service (“LIS”), 2710 Gateway Oaks Drive, Suite 150N, Sacramento, CA 95833. Thus, the sufficiency of service depends entirely on whether Rebecca Vang, at Lawyers Incorporating System, was authorized to accept service on Defendant's behalf.

Analysis

Defendant states that its agent for service of process is Cogency Global, Inc., which has held that role since October 2024, with CT Corporation System serving as the prior agent before then. (Albert H. Mayer Declaration (“Mayer Decl.”), ¶ 2.) Defendant declares that LIS has never been its agent for service of process, and that neither Rebecca Vang nor LIS was ever authorized to accept service on its behalf. (Mayer Decl., ¶ 2.) Defendant never received the service documents and first learned of the entry of default only after a co-defendant forwarded it on May 14, 2026. (Mayer Decl., ¶ 3.) Defendant seeks sanctions in the amount of $1,000, contending that Plaintiff refused to stipulate to set aside the default after being informed of the error and refused to consult the Secretary of State's website, which would have identified Cogency Global as the proper agent for service of process. (George P. Soares Declaration, ¶¶ 2-4, Exhs. 1-3.)

In opposition, Plaintiff argues that the Sheriff's Civil Bureau identified Rebecca Vang as an “Authorized Agent” on the proof of service and this designation should be credited. Plaintiff further points to a letter from LIS declining to forward the service documents as evidence that LIS was Defendant's agent at the time of service. Plaintiff does not dispute that the California Secretary of State's records identify Cogency Global as Defendant's current agent for service of process, nor does Plaintiff offer any evidence that Rebecca Vang or LIS was ever authorized to accept service on its behalf. Plaintiff asks the Court to deny Defendant's motion and deny sanctions, and alternatively requests that if the motion is granted, sanctions be denied.

“Under [Code of Civil Procedure] section 473, subdivision (d), the court may set aside a [default or] default judgment which is valid on its face, but void, as a matter of law, due to improper service." (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.' " (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413; see also *Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) However, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant challenges the Court's personal jurisdiction on the ground of improper service, and Plaintiff’s proof of service does not contain a declaration from a registered process server regarding service. Thus, the burden of proof is on plaintiff to prove the existence of jurisdiction over Defendant. (See *Summers*, *supra*, 140 Cal.App.4th at p. 413.)

Plaintiff's evidence is insufficient to meet his burden to show proper service. Plaintiff's opposition rests on the sheriff's characterization of Rececca Vang as an "Authorized Agent" on the proof of service and on the CSC rejection letter, but neither establishes actual authority. The proof of service reflects the process server's notation at the point of service, not an independent determination that Ms. Vang was authorized to accept service for Defendant, and the CSC letter does not state that LIS was Defendant's agent. It states only that the service papers did not specify which of several named defendants was being served and that CSC's customer records are confidential. Even if a rebuttable presumption of proper service arose from the proof of service, Defendant's evidence would rebut it, as it shows that neither Rebecca Vang nor LIS was acting as Defendant's agent for service of process. Accordingly, the Court finds that Defendant is entitled to relief from default under Code of Civil Procedure section 473(d).

Network asks the Court to dismiss the complaint against it and to impose monetary sanctions against Plaintiff for failure to timely serve the complaint.

The complaint was filed on March 24, 2026. Plaintiff purportedly served it on April 9, 2026 and filed proof of service on April 27, 2026, both within the 60-day period in rule 3.110(b). Rule 3.110 does not address the adequacy or manner of service, only its timing. In any event, rule 3.110(f) permits the Court to set an OSC re: sanctions for a failure to timely serve and file proof of service, but dismissal is not among the sanctions authorized under that provision. (Cf. Cal. Rules of Court, rule 2.30(b) ["If a failure to comply with an applicable rule is the responsibility of counsel and not of the party, any penalty must be imposed on counsel and must not adversely affect the party's cause of action or defense thereto."]; see *Hawks v. Hawks* (2006) 141 Cal.App.4th 1435, 1437 ["a delay of less than two years in service of the summons and complaint is not a ground for dismissal"].) The request to dismiss the complaint against Network is denied.

Network also requests $1,000 in monetary sanctions. California Rules of Court, rule 2.30(b) authorizes the Court to order a party to pay monetary sanctions for failure without good cause to comply with an applicable rule. As noted above, Plaintiff served the complaint and filed proof of service within the time set by rule 3.110(b) and it is not clear that rule 3.110 is violated where service is timely made but later determined to be defective. Network argues Plaintiff should have consulted the Secretary of State's website or stipulated to set aside the default after being told of the service defects. That is a criticism of Plaintiff's litigation strategy, not evidence that he violated rule 3.110 without good cause under rule 2.30. The request for monetary sanctions is denied. The Court nonetheless encourages the parties to act reasonably going forward.

Disposition

The motion is **granted in part and denied in part**. The May 7, 2026 default against Network Adjusters, Inc. is **hereby set aside**. Network's requests for dismissal of the complaint and for $1,000 in monetary sanctions are **denied**. Defendant shall prepare the order and serve and file notice of entry of order. Defendant shall file an answer or other responsive pleading within 15 days of the hearing.

14. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
****TENTATIVE RULING:****

After this case was reassigned to Department 16, this motion date was inadvertently not reset. It has been reset for August 5, 2026, at 9:00 am in Department 16.

15. 9:00 AM CASE NUMBER: MSC22-00438
CASE NAME: GODFREY VS. DENARD
HEARING ON SUMMARY MOTION
FILED BY: DENARD, DESIREE
TENTATIVE RULING:

The Motion for Summary Judgment is **continued** by the Court to July 23, 2026, at 9:00 a.m.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-01311
CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI
***HEARING ON MOTION FOR DISCOVERY MOTION TO QUASH DEPOSITION SUBPOENA FOR RECORDS**
FILED BY:
TENTATIVE RULING:

This matter is stayed. The Plaintiff is reminded of the requirement to show cause why this matter should not be dismissed—as was suggested by the Bankruptcy Court and Plaintiff's bankruptcy counsel—no later than July 30, 2026.

Law & Motion
Add On

17. 9:00 AM CASE NUMBER: C24-02737
CASE NAME: VANESSA MIGUEL VS. CONGREGATION B'NAI SHALOM OF CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT**
FILED BY:
TENTATIVE RULING:

The Court is in receipt of the Declaration of Kaitlyn Martinez. While the declaration answers that the settlement was difficult and the case faced many difficulties, it does not answer most of the Court's concerns. Still unresolved are: (1) how many aggrieved employees remain who have not signed releases; and (2) what actual benefit the aggrieved employees are receiving in exchange for their releases, as the Court calculated a minimal PAGA penalty amount total. As the Court previously stated, this is an individual recovery and should proceed as one.

18. 9:00 AM CASE NUMBER: C25-01289
CASE NAME: DEONN MORGAN VS. EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)
***HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO TRANSFER ACTION TO ALAMEDA COUNTY SUPERIOR COURT**
FILED BY:
****TENTATIVE RULING:****

Before the Court is Defendant East Bay Municipal Utility District, Defendant Latrice King, Defendant Deanna Zambrano Vasquez, and Defendant the Board of Directors of EBMUD (collectively, “Defendants”)’s motion to dismiss this action without prejudice pursuant to Code of Civil Procedure section 399. The motion is opposed by Plaintiff Deonn Morgan (“Plaintiff” or “Morgan”). Plaintiff is in pro per.

Defendants move on the grounds that the Court ordered the action transferred to Alameda County Superior Court on October 29, 2025 and provided that “Plaintiff shall be responsible for all payment/transfer of the case” in accordance with Code of Civil Procedure section 399; that Plaintiff was served with the notice of entry of the Order After Hearing; that Plaintiff’s writ of mandate filed with the California Court of Appeals and the California Supreme Court was denied and did not result in a stay of proceedings; and that more than 60 days have elapsed since Plaintiff was served with notice of entry of the Order After Hearing.

For the following reasons, the motion is **granted** and the action is **dismissed without prejudice**.

<u>Request for Judicial Notice</u>

Plaintiff’s unopposed request for judicial notice of pleadings and orders in this case is **granted**. (Evid. Code §§ 452, 453.)

<u>Brief Factual and Procedural History</u>

Plaintiff filed her complaint for (1) unlawful denial of water service, (2) defamation of character, (3) negligence, (4) breach of contract, and (5) intentional infliction of emotional distress on May 7, 2025. On June 18, 2025 Defendants filed a motion to transfer the action to Alameda County Superior Court.

On October 23, 2025, the Court entered a minute order granting Defendants’ motion to transfer this action to Alameda County Superior Court pursuant to Code of Civil Procedure section 397(a). The Court entered the proposed order on October 30, 2025 which provided that Plaintiff shall be responsible for all payment/transfer of the case within 30 days of proof of service of this Order After Hearing. Defendants filed a notice of entry of order and proof of service the following day.

The Order After Hearing also provided for a status conference regarding the transfer of the case on November 13, 2025. The minute order for that status conference stated that no action had been taken to transfer the case and directed Plaintiff to contact the clerk’s office to make arrangements to transfer the case and either pay the transfer fee or apply for an additional fee waiver.

The docket also reflects two writ petitions to the Court of Appeal, both denied in January 2026. Defendants filed the instant motion on January 13, 2026.

Analysis

When a case is transferred because venue is proper in a different court, the plaintiff is responsible for paying the transfer costs and fees, and the case is subject to dismissal if there is no payment within 30 days of “service of notice of the transfer order.” (Code Civ. Proc., § 399, subd. (a).)

Here, the Court granted Defendant’s motion to transfer from Contra Costa County to Alameda County pursuant to Code of Civil Procedure section 397(a) on the basis that venue is proper in Alameda County. Plaintiff was ordered to pay fees within 30 days of proof of service of the Court’s Order After Hearing. She did not do so. Additionally, both her petitions to the Court of Appeal were denied and no stay of the proceedings was issued.

Accordingly, the Court will dismiss this action without prejudice pursuant to Code of Civil Procedure section 399.